U.S. Department of Transportation
Federal Highway Administration

Western Federal Lands Highway Division
610 E. Fifth Street
Vancouver, WA 98661
Phone 360-619-7700
Fax 360-619-7846

REQUEST FOR QUOTATION

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This is a combined synopsis/solicitation for commercial products or commercial services prepared in accordance with FAR 12.201 Solicitation procedures. Solicitation number 69056727Q000005 is issued as an (RFQ) for Modular Building & Restroom Rental with Ancillary Services. Additional information as required in FAR 12.202(b)(1) is provided in the RFQ document attached herein.

This announcement constitutes the only solicitation. Quotations are being requested and a written solicitation will not be issued.

This acquisition is **UNRESTRICTED FULL & OPEN** and incorporates provisions and clauses by reference. The full text of provisions and clauses may be accessed electronically at https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52.

The North American Industry Classification System (NAICS) code is 532490 with an industry size standard of $40.0 million and the associated Product Service Code (PSC) is W054.

All interested vendors shall refer to Section E for full-text FAR Provision 52.212-1, Instructions to Offerors, and its Addendum.

Solicitation Release Date: 28-OCT-2026

Technical Questions Due Date: Day, 19-MOV-2026, at 4:00pm PT

Response Due Date: Day, 24-NOV-2026, at 2:00 pm PT

NOTICE: This solicitation and the resulting contract incorporate the latest updates from the Revolutionary Federal Acquisition Regulation (FAR) Overhaul (RFO). Any standard FAR references within this document correspond directly to the associated text in the RFO. All provisions and clauses reflect the most recent RFO requirements and approved deviations. Offerors can review the complete RFO text at Revolutionary FAR Overhaul.

Quotation Submittal Checklist

Before submitting your offer, please review the following:	**Done?**
Page A-1 (*SF18, Request for Quotation*)	
Did I fully complete blocks 8, 12, 13, 14, 15, and 16?	
Did I include our SAM.gov Unique Entity Identifier (UEI) in block 8?	
Quote Submittal (see Section E)	
Did I complete and include Section B, Price Schedule, for review under Evaluation Factor 1	
Have I complied with ALL instructions and included ALL items as stated in FAR 52.212.1 and its Addendum under Evaluation Factor 2A?	
Have I included the documentation necessary for the government to determine that all quoted equipment and/or components meet **all** minimum requirements for review under Factor 2B?	
Did I include the necessary proof of experience required for review under Evaluation Factor 2C?	
Did I provide the necessary information indicating relevant past performance for review under Evaluation Factor 3	
Did I complete the Representations and Certifications in Section E paragraph 1?	
Did I acknowledge all amendments to the solicitation, if any?	
System for Award Management (SAM) SAM.gov	
Is our account current and active?	
Have we completed our online representations and certifications within the last year?	
Have I included a copy of the “Reps and Certs FAR Report” from our SAM.gov account?	
Veteran Reporting (FAR Clause 52.222-37)	
If applicable, did I ensure our firm has completed this annual report?	

REQUEST FOR QUOTATION
(THIS IS NOT AN ORDER)

THIS RFQ ☐ IS ☒ IS NOT A SMALL BUSINESS SET-ASIDE

PAGE 1 OF PAGES 1

1. REQUEST NUMBER	2. DATE ISSUED	3. REQUISITION/PURCHASE REQUEST NUMBER	4. CERT. FOR NAT. DEF. UNDER BDSA REG. 2 AND/OR DMS REG. 1	RATING
69056727Q000005	10/28/2026	HFLWSI260133PR		

5a. ISSUED BY
Federal Highway Administration WESTERN
FEDERAL LANDS HIGHWAY DIVISION 610 E
FIFTH STREET
Vancouver WA 98661
WFL.Purchasing@dot.gov

6. DELIVER BY *(Date)*

7. DELIVERY
☒ FOB DESTINATION ☐ OTHER *(See Schedule)*

5b. FOR INFORMATION CALL *(NO COLLECT CALLS)*

NAME	TELEPHONE NUMBER	
	AREA CODE	NUMBER
Doug Taylor douglas.g.taylor@dot.gov	360	619-7738

9. DESTINATION
a. NAME OF CONSIGNEE
FHWA-WFLHD

8. TO:

a. NAME

b. COMPANY

b. STREET ADDRESS
610 E FIFTH STREET

c. STREET ADDRESS

c. CITY
Vancouver

d. CITY	e. STATE	f. ZIP CODE	d. STATE	e. ZIP CODE
			WA	98661-3801

10. PLEASE FURNISH QUOTATIONS TO THE ISSUING OFFICE IN BLOCK 5a ON OR BEFORE CLOSE OF BUSINESS *(Date)*
11/24/2026 @ 1400 PT

IMPORTANT: This is a request for information and quotations furnished are not offers. If you are unable to quote, please so indicate on this form and return it to the address in Block 5a. This request does not commit the Government to pay any costs incurred in the preparation of the submission of this quotation or to contract for supplies or service. Supplies are of domestic origin unless otherwise indicated by quoter. Any representations and/or certifications attached to this Request for Quotation must be completed by the quoter.

11. SCHEDULE *(Include applicable Federal, State and local taxes)*

ITEM NUMBER (a)	SUPPLIES/SERVICES (b)	QUANTITY (c)	UNIT (d)	UNIT PRICE (e)	AMOUNT (f)
	UEI: _____ Modular Buildings & Restroom Rental with Ancillary Services This will be a Firm-Fixed Price Task Order. The Contractor shall provide WFLHD with Modular Buildings & Restroom Rental with Ancillary Services in accordance with Section D, Statement of Work. Anticipated Period of Performance: 02/01/2027 to 01/31/2029				

12. DISCOUNT FOR PROMPT PAYMENT	a. 10 CALENDAR DAYS (%)	b. 20 CALENDAR DAYS (%)	c. 30 CALENDAR DAYS (%)	d. CALENDAR DAYS NUMBER	d. CALENDAR DAYS PERCENTAGE

NOTE: Additional provisions and representations ☐ are ☐ are not attached.

13. NAME AND ADDRESS OF QUOTER	14. SIGNATURE OF PERSON AUTHORIZED TO SIGN QUOTATION	15. DATE OF QUOTATION
a. NAME OF QUOTER		
b. STREET ADDRESS	16. SIGNER	
	a. NAME *(Type or print)*	b. TELEPHONE AREA CODE
c. COUNTY		
d. CITY / e. STATE / f. ZIP CODE	c. TITLE *(Type or print)*	NUMBER

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STANDARD FORM 18 (REV. 6/1995)
Prescribed by GSA-FAR (48 CFR) 53.215-1(a)

RESERVED

SECTION B - PRICE SCHEDULE

ITEM #	SCHEDULE OF SUPPLIES/SERVICES	QTY	UNIT	UNIT PRICE	AMOUNT
00101	**TASK 1:** Modular unit lease in accordance with the attached Statement of Work. Pricing: Firm-Fixed Price Period of Performance: 01-Mar-2027 thru 30-Dec-2028	22	MO	$	$
00201	**TASK 2:** Professional installation & ancillary services in accordance with the attached Statement of Work. Pricing: Firm-Fixed Price Period of Performance: approx 01-Feb-2027 thru 28-Feb-2027	1	LS	$	$
00301	**TASK 3:** Monthly maintenance and lease technical support in accordance with the attached Statement of Work. Pricing: Firm-Fixed Price Period of Performance: 01-Mar-2027 thru 30-Dec-2028	22	MO	$	$
00401	**TASK 4:** Teardown, demobilization, and site restoration in accordance with the attached Statement of Work. Pricing: Firm-Fixed Price Period of Performance: approx. 01-Jan-2029 thru 31-Jan-2029	1	LS	$	$
				GRAND TOTAL	$

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SECTION C – CONTRACT CLAUSES

1. FEDERAL ACQUISITION REGULATION (FAR)

52.252-2 -- Clauses Incorporated by Reference (Feb 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at https://www.acquisitions.gov/?q=browsefar

52.203-12 -- Limitation on Payments to Influence Certain Federal Transactions (Jun 2020)
52.203-13 -- Contractor Code of Business Ethics and Conduct (Nov 2021)
52.203-17 -- Contractor Employee Whistleblower Rights (Nov 2023)
52.203-19 -- Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017)
52.204-19 -- Incorporation by Reference of Representations and Certifications (Dec 2014)
52.222-3 -- Convict Labor (Jun 2003)
52.222-35 -- Equal Opportunity for Veterans (Jun 2020)
52.222-36 -- Equal Opportunity for Workers with Disabilities (Jun 2020)
52.222-37 -- Employment Reports on Veterans (Jun 2020)
52.222-41 -- Service Contract Labor Standards (Aug 2018)
52.222-42 -- Statement of Equivalent Rates for Federal Hires (May 2014)
52.222-44 -- Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (May 2014)
52.222-50 -- Combating Trafficking in Persons (Oct 2025)
52.222-54 -- Employment Eligibility Verification (Jan 2025)
52.222-62, Paid Sick Leave Under Executive Order 13706 (Jan 2022)
52.227-1 -- Authorization and Consent (Jun 2020)
52.227-2 -- Notice and Assistance Regarding Patent and Copyright Infringement (Jun 2020)
52.226-8 -- Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024)
52.232-33 -- Payment by Electronic Funds Transfer-System for Award Management (Oct 2018)
52.232-39 -- Unenforceability of Unauthorized Obligations (Jun 2013)
52.232-40 -- Providing Accelerated Payments to Small Business Subcontractors (Mar 2023)
52.233-3 -- Protest after Award (Aug 1996)
52.246-4 -- Inspection of Services – Fixed-Price (Aug 1996)

(End of clause)

52.204-13 -- System for Award Management – Maintenance (DEVIATION Nov 2025)

(a) *Definitions*. As used in this clause—

Commercial and Government Entity code means—
(1)An identifier assigned to entities located in the United States or its outlying areas by the Defense Logistics Agency (DLA) Commercial and Government Entity (CAGE) Branch to identify a commercial or government entity by unique location (referred to as “CAGE code”); or
(2) An identifier assigned by a member of the North Atlantic Treaty Organization (NATO) or by the NATO Support and Procurement Agency to entities located outside the United States

and its outlying areas that the DLA CAGE Branch records and maintains in the CAGE master file (referred to as “NCAGE code”).

*Unique Entity Identifier (UEI)*means an identifier used to identify a specific commercial, nonprofit, or Government entity.

(b) *Active registration*. The Contractor shall maintain an active Federal Government contracts registration in the System for Award Management (SAM) at https://www.sam.gov during contract performance and through final payment under this contract. To maintain an active registration in SAM, the Contractor shall review at least annually its registration in SAM and validate that the information is current, accurate, and complete.

(2)The Contractor is responsible for the currency, accuracy, and completeness of the information provided within SAM, and for any liability resulting from the Government’s reliance on inaccurate or incomplete information. Updating SAM does not alter the terms and conditions of this contract and is not a substitute for a properly executed contractual document.

(c) *Novation and change-of-name agreements*.

(1)If the Contractor has legally changed its business name or “doing business as” name (whichever is shown on the contract), or has transferred the assets used to perform the contract, but has not completed the necessary requirements regarding novation and change-of-name agreements in part 42 of the Federal Acquisition Regulation (FAR), the Contractor shall provide the responsible Contracting Officer a minimum of one business day’s written notification of its intention to —

(i)Change the legal business name in SAM;

(ii)Comply with the requirements of FAR part 42; and

(iii)Agree in writing to the timeline and procedures specified by the responsible Contracting Officer. The Contractor shall provide with its written notification sufficient documentation to support the legally changed name.

(2)If the Contractor fails to comply with the requirements of paragraph (c)(1) of this clause, or fails to perform the agreement at paragraph (c)(1)(iii) of this clause, and, in the absence of a properly executed novation or change-of-name agreement, the SAM information that shows the Contractor to be other than the Contractor indicated in the contract will be considered to be incorrect information within the meaning of the “Suspension of Payment” paragraph of the electronic funds transfer (EFT) clause of this contract.

(d) *Assignees*.

(1)The Contractor shall not change the legal business name or address for EFT payments or manual payments, as appropriate, in the SAM record to reflect an assignee for the purpose of assignment of claims (see FAR part 32). Assignees shall be separately registered in SAM.

(2)Information provided to the Contractor’s SAM record that indicates payments, including those made by EFT, to an ultimate recipient other than that Contractor will be incorrect information within the meaning of the “Suspension of Payment” paragraph of the EFT clause of this contract.

(e)Unique entity identifier (UEI). The Contractor shall ensure that its UEI is maintained throughout the life of the contract.

(f)Commercial and Government Entity (CAGE) code. The Contractor shall ensure that the CAGE code is maintained throughout the life of the contract. To update a CAGE code, the Contractor shall initiate the change by updating its SAM registration.

(g)Communicating changes. The Contractor shall communicate any change to its UEI or CAGE code to the Contracting Officer within 30 days after the change, so a modification can be issued to update the UEI or CAGE code on this contract. A change in the UEI does not necessarily require a novation.

(End of clause)

52.209-6 -- Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded (DEVIATION Sep 2025)

(a) *Definition*. As used in this clause—

Commercially available off-the-shelf (COTS) item

(1) Means any item of supply (including construction material) that is–

(i) A commercial product (as defined in paragraph (1) of the definition of “commercial product” in Federal Acquisition Regulation (FAR) 2.101);

(ii) Sold in substantial quantities in the commercial marketplace; and

(iii) Offered to the Government, under a contract or subcontract at any tier, without modification, in the same form in which it is sold in the commercial marketplace; and

(2) Does not include bulk cargo, as defined in 46 U.S.C. 40102(4), such as agricultural products and petroleum products.

(b) The Government suspends or debars Contractors to protect the Government's interests. Other than a subcontract for a commercially available off-the-shelf item, the Contractor shall not enter into any subcontract, in excess of the threshold specified in FAR 9.405-2(b) on the date of subcontract award, with a Contractor that is debarred, suspended, or proposed for debarment by any executive agency unless a compelling reason exists to do so.

(c) The Contractor shall require each proposed subcontractor whose subcontract will exceed the threshold specified in FAR 9.405-2(b) on the date of subcontract award, other than a subcontractor providing a commercially available off-the-shelf item, to disclose to the Contractor, in writing, whether as of the time of award of the subcontract, the subcontractor, or its principals, is or is not debarred, suspended, proposed for debarment, or voluntarily excluded by the Federal Government.

(d) A corporate officer or a designee of the Contractor shall notify the Contracting Officer, in writing, before entering into a subcontract with a party (other than a subcontractor providing a commercially available off-the-shelf item) that is debarred, suspended, proposed for debarment, or voluntarily excluded (see FAR 9.404 for information on the System for Award Management (SAM) Exclusions). The notice must include the following:

(1) The name of the subcontractor.

(2) The Contractor’s knowledge of the reasons for the subcontractor being listed with an exclusion in SAM.

(3) The compelling reason(s) for doing business with the subcontractor notwithstanding its being listed with an exclusion in SAM.

(4) The systems and procedures the Contractor has established to ensure that it is fully protecting the Government's interests when dealing with such subcontractor in view of the specific basis for the party’s suspension, proposed debarment, or voluntary exclusion.

(e) *Subcontracts*. Unless this is a contract for the acquisition of commercial products or commercial services, the Contractor shall include the requirements of this clause, including this paragraph (e) (appropriately modified for the identification of the parties), in each subcontract that—

(1) Exceeds the threshold specified in FAR 9.405-2(b) on the date of subcontract award; and

(2) Is not a subcontract for commercially available off-the-shelf items.

(End of clause)

52.209-10 -- Prohibition on Contracting with Inverted Domestic Corporations (DEVIATION Sep 2025)

(a) *Definitions*. As used in this clause-

Inverted domestic corporation means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395(b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Subsidiary means an entity in which more than 50 percent of the entity is owned—

(1) Directly by a parent corporation; or

(2) Through another subsidiary of a parent corporation.

(b) If the contractor reorganizes as an inverted domestic corporation or becomes a subsidiary of an inverted domestic corporation at any time during the period of performance of this contract, applicable law may prohibit the Government from paying for Contractor activities performed after the date when it becomes an inverted domestic corporation or subsidiary. The Government may seek any available remedies in the event the Contractor fails to perform in accordance with the terms and conditions of the contract as a result of Government action under this clause.

(c) Exceptions to this prohibition are located at 9.108-3.

(d) In the event the Contractor becomes either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation during contract performance, the Contractor shall give written notice to the Contracting Officer within five business days from the date of the inversion event.

(End of clause)

52.212-4 -- Contract Terms and Conditions – Commercial Products and Commercial Services (DEVIATION Aug 2025)

(a) *Definitions*. The clause at Federal Acquisition Regulation (FAR) 52.202-1, Definitions, is incorporated by reference.

(b) *Inspection/Acceptance*. The Contractor shall only tender for acceptance those items that conform to the requirements of this contract. The Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of nonconforming supplies or reperformance of nonconforming services at no increase in contract price. If repair/replacement or reperformance will not correct

the defects or is not possible, the Government may seek an equitable price reduction or adequate consideration for acceptance of nonconforming supplies or services. The Government must exercise its post acceptance rights—

(1) Within a reasonable time after the defect was discovered or should have been discovered; and

(2) Before any substantial change occurs in the condition of the item, unless the change is due to the defect in the item.

(c) *Assignment*. The Contractor or its assignee may assign its rights to receive payment due as a result of performance of this contract to a bank, trust company, or other financing institution, including any Federal lending agency in accordance with the Assignment of Claims Act (31 U.S.C. 3727). However, when a third party makes payment (*e.g.,* use of the Governmentwide commercial purchase card), the Contractor may not assign its rights to receive payment under this contract.

(d) *Changes*. Changes in the terms and conditions of this contract may be made only by written agreement of the parties.

(e) *Disputes*. This contract is subject to 41 U.S.C. chapter 71, Contract Disputes. Failure of the parties to this contract to reach agreement on any request for equitable adjustment, claim, appeal, or action arising under or relating to this contract shall be a dispute to be resolved in accordance with the clause FAR 52.233-1, Disputes, which is incorporated in this contract by reference. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any dispute arising under the contract.

(f) *Excusable delays*. The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or negligence. Examples of occurrences include acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. When an excusable delay occurs, the Contractor shall—

(1) Notify the Contracting Officer in writing as soon as possible;

(2) Remedy the delay as quickly as possible; and

(3) Notify the Contracting Officer when the occurrence is over.

(g) Invoice. The Government will handle invoices according to the Prompt Payment Act (31 U.S.C. 3903) and 5 CFR part 1315. The Contractor shall submit invoices to the address designated in the contract to receive invoices. An invoice must include the information required by 5 CFR part 1315.9(b).

(h) *Patent indemnity*. The Contractor shall indemnify the Government and its officers, employees, and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to infringe, any United States or foreign patent, trademark, or copyright, arising out of the performance of this contract, provided the Contractor is reasonably notified of such claims and proceedings.

(i) *Payment*—

(1) *Items accepted*. Payment shall be made for items accepted by the Government that have been delivered to the delivery destinations set forth in this contract.

(2) *Prompt payment*. The Government will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 CFR Part 1315.

(3) *Discount*. In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date which appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(4) *Overpayments*. If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall—

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the—

(A) Circumstances of the overpayment (*e.g.*, duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable; and

(D) Contractor point of contact.

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(5) *Interest*.

(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, as provided in (i)(6)(v) of this clause, and then at the rate applicable for each six-month period as fixed by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) *Final decisions*. The Contracting Officer will issue a final decision as required by if–

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt within 30 days;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer (see 32.607-2).

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a default termination.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on-

(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under the procedures for interest credits prescribed in FAR part 32 in effect on the date of this contract.

(j) *Risk of loss*. Unless the contract specifically provides otherwise, risk of loss or damage to the supplies provided under this contract shall remain with the Contractor until, and shall pass to the Government upon—

(1) Delivery of the supplies to a carrier, if transportation is f.o.b. origin; or

(2) Delivery of the supplies to the Government at the destination specified in the contract, if transportation is f.o.b. destination.

(k) *Taxes*. The contract price includes all applicable Federal, State, and local taxes and duties.

(l) *Termination for the Government's convenience*. The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid a percentage of the contract price reflecting the percentage of the work performed prior to the notice of termination, plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system, have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred which reasonably could have been avoided.

(m) *Termination for cause*. The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. The Government will send a cure notice to the Contractor, unless the reason for the termination is late delivery. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

(n) *Title*. Unless specified elsewhere in this contract, title to items furnished under this contract shall pass to the Government upon acceptance, regardless of when or where the Government takes physical possession.

(o) *Warranty*. The Contractor warrants and implies that the items delivered hereunder are merchantable and fit for use for the particular purpose described in this contract.

(p) *Limitation of liability*. Except as otherwise provided by an express warranty, the Contractor will not be liable to the Government for consequential damages resulting from any defect or deficiencies in accepted items.

(q) *Compliance with laws unique to Government contracts*. The Contractor agrees to comply with 31 U.S.C. 1352 relating to limitations on the use of appropriated funds to influence certain Federal contracts; 40 U.S.C. chapter 37, Contract Work Hours and Safety Standards; 41 U.S.C. chapter 87, Kickbacks; 49 U.S.C. 40118, Government-financed air transportation; and 41 U.S.C. chapter 21 relating to procurement integrity.

(r) *Order of precedence*. Any inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order:

(1) The schedule of supplies/services;

(2) The Disputes, Payments, Invoice, Compliance with Laws Unique to Government Contracts, and Unauthorized Obligations paragraphs of this clause;

(3) Other contract clauses incorporated in the solicitation or contract;

(4) Addenda to this solicitation or contract;

(5) Solicitation provisions incorporated in the solicitation;

(6) Other paragraphs of this clause;

(7) Other documents, exhibits, and attachments; and

(8) The specification.

(s) *Unauthorized obligations*.

(1) Except as stated in paragraph (s)(2) of this clause, when any supply or service acquired under this contract is subject to any End User License Agreement (EULA), Terms of Service (TOS), or similar legal instrument or agreement, that includes any clause requiring the Government to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:

(i) Any such clause is unenforceable against the Government.

(ii) Neither the Government nor any Government-authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the EULA, TOS, or similar legal instrument or agreement. If the EULA, TOS, or similar legal instrument or agreement is invoked through an “I agree” click box or other comparable mechanism (e.g., “click-wrap” or “browse-wrap” agreements), execution does not bind the Government or any Government authorized end user to such clause.

(iii) Any such clause is deemed to be stricken from the EULA, TOS, or similar legal instrument or agreement.

(2) Paragraph (s)(1) of this clause does not apply to indemnification by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

(t) *Comptroller General examination of record*. This paragraph applies if this contract was awarded using other than sealed bid procedures and is in excess of the simplified acquisition threshold on the date of award of this contract.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor’s directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices, at all reasonable times, the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR part 4, longer period required by statute, or periods specified in other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This clause does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(u) *Incorporation by reference*. The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of clause)

2.217-8 -- Option to Extend Services (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only because of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed six (6) months. The Contracting Officer may exercise the option by written notice to the Contractor any time within the contract period.

(End of clause)

52.219-8 -- Utilization of Small Business Concerns (DEVIATION Nov 2025)

(a) Definitions. As used in this contract—

HUBZone small business concern means a small business concern that meets the requirements described in 13 CFR 126.200, certified by the Small Business Administration (SBA) and designated by SBA as a HUBZone small business concern in the Small Business Search (SBS) and the System for Award Management (SAM).

Service-disabled veteran-owned small business (SDVOSB) concern means an SDVOSB concern that meets the requirements described in 13 CFR 128.300, is certified by SBA, and is designated by SBA as an SDVOSB concern in SBS and SAM.

Small business concern means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation and qualified as a small business under the criteria and size standards in 13 CFR part 121, including the size standard that corresponds to the NAICS code assigned to the contract or subcontract.

Small disadvantaged business (SDB) concern means a small business concern under the size standard applicable to the acquisition, that-

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by-

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States; and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13.CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Veteran-owned small business (VOSB) concern means a small business concern-

(1) Not less than 51 percent of which is owned and controlled by one or more veterans (as defined at 38 U.S.C.101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned small business (WOSB) concern means a small business concern-

(1) That is at least 51 percent owned by one or more women, or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women;

(2) Whose management and daily business operations are controlled by one or more women; and

(3) That is certified by SBA or an approved third- party certifier in accordance with 13 CFR 127.300 and is designated by SBA as a WOSB concern in SBS and SAM.

(b) It is the policy of the United States that small business concerns, VOSB concerns, SDVOSB concerns, HUBZone small business concerns, SDB concerns, and WOSB concerns shall have the maximum practicable opportunity to participate in performing contracts let by any Federal agency, including contracts and subcontracts for subsystems, assemblies, components, and related services for major systems. It is further the policy of the United States that its prime contractors establish procedures to ensure the timely payment of amounts due pursuant to the terms of their subcontracts with small business concerns, VOSB concerns, SDVOSB concerns, HUBZone small business concerns, SDB concerns, and WOSB concerns.

(c)(1) A joint venture qualifies as a small business concern if—

(i) Each party to the joint venture qualifies as small under the size standard for the solicitation; or

(ii) The protégé is small under the size standard for the solicitation in a joint venture comprised of a mentor and protégé with an approved mentor-protégé agreement under a SBA mentor-protégé program. (See 13 CFR 125.9(d).)

(2) A joint venture qualifies as a HUBZone small business concern if it complies with the requirements in 13 CFR 126.616(a) through (c).

(d) The Contractor hereby agrees to carry out this policy in the awarding of subcontracts to the fullest extent consistent with efficient contract performance. The Contractor further agrees to cooperate in any studies or surveys as may be conducted by the Small Business Administration or the awarding agency of the as may be necessary to determine the extent of the Contractor's compliance with this clause.

(e)(1) Unless the Contractor has reason to question the representation, it may accept a subcontractor's written representations of its size and socioeconomic status as a small business or SDB, if the subcontractor represents that the size and socioeconomic status representations with its offer are current, accurate, and complete as of the date of the offer for the subcontract.

(2) Unless the Contractor has reason to question the representation, it may accept a subcontractor's representations of its size and socioeconomic status as a small business or SDB in the System for Award Management (SAM) if the subcontractor—

(i) Is registered in SAM; and

(ii) Represents that the size and socioeconomic status representations made in SAM are current, accurate and complete as of the date of the offer for the subcontract.

(3) The Contractor may not require that the subcontractor register in SAM for the purposes of representing size or socioeconomic status in connection with a subcontract.

(4) A contractor acting in good faith is not liable for misrepresentations made by its subcontractors regarding the subcontractor's size or socioeconomic status.

(5) The Contractor shall confirm that a subcontractor representing itself as a HUBZone small business concern, VOSB, SDVOSB, or WOSB concern is certified by SBA by checking SAM or SBS at https://search.certifications.sba.gov/.

(End of clause)

52.219-28 -- Postaward Small Business Program Rerepresentation (DEVIATION Nov 2025)

(a) *Definitions*. As used in this clause—

Long-term contract means a contract of more than five years in duration, including options. However, the term does not include contracts that exceed five years in duration because the period of performance has been extended for a cumulative period not to exceed six months under the clause at 52.217-8, Option to Extend Services, or other appropriate authority.

Small business concern—

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (c) of this clause.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

(b) If the Contractor represented that it was a small business concern, a small disadvantaged business concern, or a joint venture that was any of the small business concerns identified in 19.000(a)(3) prior to award of this contract, the Contractor shall rerepresent its size and socioeconomic status according to paragraph (e) of this clause or, if applicable, paragraph (g) of this clause, upon occurrence of any of the following:

(1) Within 30 days after execution of a novation agreement or within 30 days after modification of the contract to include this clause, if the novation agreement was executed prior to inclusion of this clause in the contract.

(2) Within 30 days after a merger or acquisition that does not require a novation or within 30 days after modification of the contract to include this clause, if the merger or acquisition occurred prior to inclusion of this clause in the contract.

(3) For long-term contracts-

(i) Within 60 to 120 days prior to the end of the fifth year of the contract; and

(ii) Within 60 to 120 days prior to the date specified in the contract for exercising any option thereafter.

(c) The Contractor shall rerepresent its size status in accordance with the size standard in effect at the time of this rerepresentation that corresponds to the North American Industry Classification System (NAICS) code(s) assigned to this contract. The small business size standard corresponding to this NAICS code(s) can be found at https://www.sba.gov/document/support--table-size-standards.

(d) The small business size standard for a Contractor providing an end item that it does not manufacture, process, or produce itself, for a contract other than a construction or service

contract, is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition—

(1) Was set aside for small business and has a value above the simplified acquisition threshold;

(2) Used the HUBZone price evaluation preference regardless of dollar value, unless the Contractor waived the price evaluation preference; or

(3) Was an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(e) Except as provided in paragraph (g) of this clause, the Contractor shall make the representation(s) required by paragraph (b) of this clause by validating or updating all its representations in the Representations and Certifications section of the System for Award Management (SAM) and its other data in SAM, as necessary, to ensure that they reflect the Contractor's current status. The Contractor shall notify the contracting officer in writing within the timeframes specified in paragraph (b) of this clause, that the data have been validated or updated, and provide the date of the validation or update.

(f) If the Contractor represented that it was other than a small business concern prior to award of this contract, the Contractor may, but is not required to, take the actions required by paragraphs (e) or (g) of this clause.

(g) If the Contractor does not have representations and certifications in SAM, or does not have a representation in SAM for the NAICS code applicable to this contract, the Contractor is required to complete the following rerepresentation and submit it to the contracting office, along with the contract number and the date on which the rerepresentation was completed:

(1) The Contractor represents that it [ ] is, [ ] is not a small business concern under *NAICS Code*_____ assigned to *contract number*_____.

(2) [*Complete only if the Contractor represented itself as a small business concern in paragraph (g)(1) of this clause*.] The Contractor represents that it [ ] is, [ ] is not, a small, disadvantaged business concern as defined in 13 CFR 124.1001.

(3) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program*. The Contractor represents that it [ ] is, [ ] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [*The Contractor shall enter the name and unique entity identifier of each party to the joint venture:* _____.]

(4) *Economically disadvantaged women-owned small business (EDWOSB) joint venture*. The Contractor represents that it [ ] is, [ ] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [*The Contractor shall enter the name and unique entity identifier of each party to the joint venture:* _____ .]

(5) *Service-disabled veteran-owned small business (SDVOSB) joint venture eligible under the SDVOSB Program*. The Contractor represents that it [ ] is, [ ] is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [*The Contractor shall enter the name and unique entity identifier of each party to the joint venture:*_____.]

(6) *HUBZone joint venture eligible under the HUBZone Program.*[*Complete only if the offeror is a HUBZone small business concern.*] The offeror represents, as part of its offer, that it [ ] is, [ ] is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [*The Contractor shall enter the name and unique entity identifier of each party to the joint venture:*_____.] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone

concern. [*Contractor to sign and date and insert authorized signer's name and title.*_____]

(End of clause)

52.222-19 -- Child Labor-Cooperation with Authorities and Remedies (DEVIATION May 2026)

(a) *Applicability*. This clause does not apply to the extent that the Contractor is supplying end products mined, produced, or manufactured in-

(1) Israel, and the anticipated value of the acquisition is $50,000 or more;

(2) Mexico, and the anticipated value of the acquisition is $105,767 or more; or

(3) Armenia, Aruba, Australia, Austria, Belgium, Bulgaria, Canada, Croatia, Cyprus, Czech Republic, Denmark, Estonia, Finland, France, Germany, Greece, Hong Kong, Hungary, Iceland, Ireland, Italy, Japan, Korea, Latvia, Liechtenstein, Lithuania, Luxembourg, Malta, Moldova, Montenegro, Netherlands, New Zealand, North Macedonia, Norway, Poland, Portugal, Romania, Singapore, Slovak Republic, Slovenia, Spain, Sweden, Switzerland, Taiwan, Ukraine, or the United Kingdom and the anticipated value of the acquisition is $174,000 or more.

(b) *Cooperation with Authorities*. To enforce the laws prohibiting the manufacture or importation of products mined, produced, or manufactured by forced or indentured child labor, authorized officials may need to conduct investigations to determine whether forced or indentured child labor was used to mine, produce, or manufacture any product furnished under this contract. If the solicitation includes the provision 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products, or the equivalent at 52.212-3(i), the Contractor agrees to cooperate fully with authorized officials of the contracting agency, the Department of the Treasury, or the Department of Justice by providing reasonable access to records, documents, persons, or premises upon reasonable request by the authorized officials.

(c) *Violations*. The Government may impose remedies set forth in paragraph (d) for the following violations:

(1) The Contractor has submitted a false certification regarding knowledge of the use of forced or indentured child labor for listed end products.

(2) The Contractor has failed to cooperate, if required, in accordance with paragraph (b) of this clause, with an investigation of the use of forced or indentured child labor by an Inspector General, Attorney General, or the Secretary of the Treasury.

(3) The Contractor uses forced or indentured child labor in its mining, production, or manufacturing processes.

(4) The Contractor has furnished under the contract end products or components that have been mined, produced, or manufactured wholly or in part by forced or indentured child labor. (The Government will not pursue remedies at paragraph (d)(2) or paragraph (d)(3) of this clause unless sufficient evidence indicates that the Contractor knew of the violation.)

(d) Remedies.

(1) The Contracting Officer may terminate the contract.

(2) The suspending and debarring official may suspend the Contractor in accordance with procedures in FAR subpart 9.4.

(3) The suspending and debarring may debar the Contractor for a period not to exceed 3 years in accordance with the procedures in FAR subpart 9.4.

(End of clause)

52.222-90 -- Addressing DEI Discrimination by Federal Contractors (DEVIATION Apr 2026)

(a) *Definitions*. As used in this clause—

Program participation means membership or participation in, or access or admission to: training, mentoring, or leadership development programs; educational opportunities; clubs; associations; or similar opportunities that are sponsored or established by the contractor or subcontractor.

Racially discriminatory diversity, equity, and inclusion (DEI) activities means disparate treatment based on race or ethnicity in the recruitment, employment (e.g., hiring, promotions), contracting (*e.g.*, vendor agreements), program participation, or allocation or deployment of an entity's resources.

(b) In connection with the performance of work under this contract, the Contractor agrees as follows:

(1) The Contractor will not engage in any racially discriminatory DEI activities;

(2) The Contractor will furnish all information and reports, including providing access to books, records, and accounts, as required by the Contracting Officer, for purposes of ascertaining compliance with this clause;

(3) In the event of the Contractor's or a subcontractor's noncompliance with this clause, this contract may be canceled, terminated, or suspended in whole or in part, and the Contractor or subcontractor may be declared ineligible for further Government contracts;

(4) The Contractor will report any subcontractor's known or reasonably knowable conduct that may violate this clause to the Contracting Officer and take any appropriate remedial actions directed by the Contracting Officer; and

(5) The Contractor will inform the Contracting Officer if a subcontractor sues the Contractor and the suit puts at issue, in any way, the validity of this clause.

(6) The Contractor recognizes that compliance with the requirements of this clause are material to the Government's payment decisions for purposes of 31 U.S.C. 3729(b)(4).

(c) The Contractor must include the substance of this clause, including this paragraph (c), in subcontracts at any tier, including those for commercial products and commercial services, except those where the place of delivery or performance is outside the United States.

(End of clause)

52.223-2 -- Reporting of Biobased Products Under Service and Construction Contracts (DEVIATION Dec 2025)

(a) Definitions. As used in this clause—

Biobased product means a product determined by the U.S. Department of Agriculture (USDA) to be a commercial product or industrial product (other than food or feed) that is composed, in whole or in significant part, of biological products, including renewable domestic agricultural materials and forestry materials, or that is an intermediate ingredient or feedstock. The term includes, with respect to forestry materials, forest products that meet biobased content requirements, notwithstanding the market share the product holds, the age of the product, or whether the market for the product is new or emerging. (7 U.S.C. 8101) (7 CFR 4270.2).

USDA-designated product category a generic grouping of biobased products that are listed by USDA in a procurement guideline (7 CFR part 4270) and for which USDA has provided minimum biobased content standards (see https://www.biopreferred.gov/resources/categories.html).

(b) Requirement. The Contractor shall—

(1) Report to https://www.sam.gov, with a copy to the Contracting Officer, on the product types and dollar value of any biobased products in USDA-designated product categories purchased by the Contractor during the previous Government fiscal year, between October 1 and September 30; and

(2) Submit this report no later than—

(i) October 31 of each year during contract performance; and

(ii) At the end of contract performance.

(End of clause)

52.223-23 -- Sustainable Products and Services (DEVIATION Dec 2025)

(a) *Definitions.* As used in this clause—

Sustainable product means—

(1) A product that contains recovered material designated by the EPA under the Comprehensive Procurement Guidelines (42 U.S.C. 6962) (40 CFR part 247) (https://www.epa.gov/smm/comprehensive-procurement-guideline-cpg-program#products).

(2) An energy-efficient product or low standby power device (42 U.S.C. 8259b) (10 CFR part 436, subpart C) (https://www.energy.gov/eere/femp/search-energy-efficient-products, https://www.energystar.gov/products?s=mega, and https://www.energy.gov/femp/low-standby-power-product-list).

(3) A biobased product that meets the content requirements of the USDA under the BioPreferred® program (7 U.S.C. 8102) (7 CFR Part 4270) (https://www.biopreferred.gov/).

(4) A substance identified in the EPA's Significant New Alternatives Policy (SNAP) program as a safe alternative to an ozone-depleting substance (42 U.S.C. 7671l) (40 CFR part 82, subpart G) (https://www.epa.gov/snap/unacceptable-and-acceptable-substitutes-tables).

(b) *Requirements*. The Government has identified in the statement of work or elsewhere in the contract the sustainable products that are required during the performance of this contract. The Contractor shall ensure that it provides sustainable products as required by this contract, when the products are—

(1) Delivered to the Government;

(2) Furnished for use by the Government;

(3) Incorporated into the construction of a public building or public work; or

(c) Furnished for use in performing services under this contract, where the cost of the products is a direct cost to this contract.

(End of clause)

52.240-91 -- Security Prohibitions and Exclusions (DEVIATION Sep 2025)

(a) *Definitions.* As used in this clause—

American Security Drone Act-covered foreign entity means an entity included on a list that the Federal Acquisition Security Council (FASC) develops and maintains and publishes in the System for Award Management (SAM) at https://www.sam.gov (section 1822 of Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

Backhaul means intermediate links between the core network, or backbone network, and the small subnetworks at the edge of the network (e.g., connecting cell phones/towers to the core telephone network). Backhaul can be wireless (e.g., microwave) or wired (e.g., fiber optic, coaxial cable, Ethernet).

Covered application means the social networking service TikTok or any successor application or service developed or provided by ByteDance Limited or an entity owned by ByteDance Limited.

Covered article, as defined in 41 U.S.C. 4713(k), means:

(1) Information technology, as defined in 40 U.S.C. 11101, including cloud computing services of all types;

(2) Telecommunications equipment or telecommunications service, as those terms are defined in section 3 of the Communications Act of 1934 (47 U.S.C. 153);

(3) The processing of information on a Federal or non-Federal information system, subject to the requirements of the Controlled Unclassified Information program (see 32 CFR part 2002); or

(4) Hardware, systems, devices, software, or services that include embedded or incidental information technology.

Covered foreign country means The People's Republic of China.

Covered telecommunications equipment or services means—

(1) Telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation (or any subsidiary or affiliate of such entities);

(2) For the purpose of public safety, security of Government facilities, physical security surveillance of critical infrastructure, and other national security purposes, video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company (or any subsidiary or affiliate of such entities);

(3) Telecommunications or video surveillance services provided by such entities or using such equipment; or

(4) Telecommunications or video surveillance equipment or services produced or provided by an entity that the Secretary of Defense, in consultation with the Director of National Intelligence or the Director of the Federal Bureau of Investigation, reasonably believes to be an entity owned or controlled by, or otherwise connected to, the government of a covered foreign country.

Critical technology means—

(1) Defense articles or defense services included on the United States Munitions List set forth in the International Traffic in Arms Regulations under subchapter M of chapter I of title 22, Code of Federal Regulations;

(2) Items included on the Commerce Control List set forth in Supplement No. 1 to part 774 of the Export Administration Regulations under subchapter C of chapter VII of title 15, Code of Federal Regulations, and controlled—

(i) Pursuant to multilateral regimes, including for reasons relating to national security, chemical and biological weapons proliferation, nuclear nonproliferation, or missile technology; or

(ii) For reasons relating to regional stability or surreptitious listening;

(3) Specially designed and prepared nuclear equipment, parts and components, materials, software, and technology covered by part 810 of title 10, Code of Federal Regulations (relating to assistance to foreign atomic energy activities);

(4) Nuclear facilities, equipment, and material covered by part 110 of title 10, Code of Federal Regulations (relating to export and import of nuclear equipment and material);

(5) Select agents and toxins covered by part 331 of title 7, Code of Federal Regulations, part 121 of title 9 of such Code, or part 73 of title 42 of such Code; or

(6) Emerging and foundational technologies controlled pursuant to section 1758 of the Export Control Reform Act of 2018 (50 U.S.C. 4817).

FASC-prohibited unmanned aircraft system means an unmanned aircraft system manufactured or assembled by an American Security Drone Act—covered foreign entity.

FASCSA order means any of the following orders issued under the Federal Acquisition Supply Chain Security Act (FASCSA) requiring removing covered articles from executive agency information systems or excluding one or more named sources or named covered articles from executive agency procurement actions, as described in 41 CFR 201-1.303(d) and (e):

(1) The Secretary of Homeland Security may issue FASCSA orders that apply to civilian agencies, to the extent not covered by paragraph (2) or (3) of this definition. This type of FASCSA order may be referred to as a Department of Homeland Security (DHS) FASCSA order.

(2) The Secretary of Defense may issue FASCSA orders that apply to the Department of Defense (DoD) and national security systems other than sensitive compartmented information systems. This type of FASCSA order may be referred to as a DoD FASCSA order.

(3) The Director of National Intelligence (DNI) may issue FASCSA orders that apply to the intelligence community and sensitive compartmented information systems, to the extent not covered by paragraph (2) of this definition. This type of FASCSA order may be referred to as a DNI FASCSA order.

Information technology, as defined in 40 U.S.C. 11101(6)—

(1) Means any equipment or interconnected system or subsystem of equipment, used in the automatic acquisition, storage, analysis, evaluation, manipulation, management, movement, control, display, switching, interchange, transmission, or reception of data or information by the executive agency, if the equipment is used by the executive agency directly or is used by a contractor under a contract with the executive agency that requires the use—

(i) Of that equipment; or

(ii) Of that equipment to a significant extent in the performance of a service or the furnishing of a product;

(2) Includes computers, ancillary equipment (including imaging peripherals, input, output, and storage devices necessary for security and surveillance), peripheral equipment designed to be controlled by the central processing unit of a computer, software, firmware and similar procedures, services (including support services), and related resources; but

(3) Does not include any equipment acquired by a Federal contractor incidental to a Federal contract.

Intelligence community, as defined by 50 U.S.C. 3003(4), means the following—

(1) The Office of the Director of National Intelligence;

(2) The Central Intelligence Agency;
(3) The National Security Agency;
(4) The Defense Intelligence Agency;
(5) The National Geospatial-Intelligence Agency;
(6) The National Reconnaissance Office;
(7) Other offices within the Department of Defense for the collection of specialized national intelligence through reconnaissance programs;
(8) The intelligence elements of the Army, the Navy, the Air Force, the Marine Corps, the Coast Guard, the Federal Bureau of Investigation, the Drug Enforcement Administration, and the Department of Energy;
(9) The Bureau of Intelligence and Research of the Department of State;
(10) The Office of Intelligence and Analysis of the Department of the Treasury;
(11) The Office of Intelligence and Analysis of the Department of Homeland Security; or
(12) Such other elements of any department or agency as may be designated by the President, or designated jointly by the Director of National Intelligence and the head of the department or agency concerned, as an element of the intelligence community.

Interconnection arrangements means arrangements governing the physical connection of two or more networks to allow the use of another's network to hand off traffic where it is ultimately delivered (e.g., connecting a customer of telephone provider A to a customer of telephone company B) or sharing data and other information resources.

Kaspersky Lab-covered article means any hardware, software, or service that—
(1) Is developed or provided by a Kaspersky Lab-covered entity;
(2) Includes any hardware, software, or service developed or provided in whole or in part by a Kaspersky Lab-covered entity; or
(3) Contains components using any hardware or software developed in whole or in part by a Kaspersky Lab-covered entity.

Kaspersky Lab-covered entity means—
(1) Kaspersky Lab;
(2) Any successor entity to Kaspersky Lab, including any change in name, e.g., "Kaspersky";
(3) Any entity that controls, is controlled by, or is under common control with Kaspersky Lab; or
(4) Any entity of which Kaspersky Lab has a majority ownership.

National security system, as defined in 44 U.S.C. 3552, means any information system (including any telecommunications system) used or operated by an agency or by a contractor of an agency, or other organization on behalf of an agency—
(1) The function, operation, or use of which involves intelligence activities; involves cryptologic activities related to national security; involves command and control of military forces; involves equipment that is an integral part of a weapon or weapons system; or is critical to the direct fulfillment of military or intelligence missions, but does not include a system that is to be used for routine administrative and business applications (including payroll, finance, logistics, and personnel management applications); or
(2) Is protected at all times by procedures established for information that have been specifically authorized under criteria established by an Executive order or an Act of Congress to be kept classified in the interest of national defense or foreign policy.

Roaming means cellular communications services (e.g., voice, video, data) received from a visited network when unable to connect to the facilities of the home network either because signal coverage is too weak or because traffic is too high.

Sensitive compartmented information means classified information concerning or derived from intelligence sources, methods, or analytical processes, which is required to be handled within formal access control systems established by the Director of National Intelligence.

Sensitive compartmented information system means a national security system authorized to process or store sensitive compartmented information.

Source means a non-Federal supplier, or potential supplier, of products or services, at any tier.

Subsidiary means an entity in which more than 50 percent of the entity is owned directly by a parent corporation or through another subsidiary of a parent corporation.

Substantial or essential component means any component necessary for the proper function or performance of a piece of equipment, system, or service.

Unmanned aircraft means an aircraft that is operated without the possibility of direct human intervention from within or on the aircraft (49 U.S.C. 44801(11)).

Unmanned aircraft system means an unmanned aircraft and associated elements (including communication links and the components that control the unmanned aircraft) that are required for the operator to operate safely and efficiently in the national airspace system (49 U.S.C. 44801(12)).

(b) *Prohibitions on providing or using specific products or services in performance of contract*. Unless a waiver or exception applies, the Contractor is prohibited from providing any products or services to the Government or using in the performance of the contract any of the following:

(1) A covered application on any information technology owned or managed by the Government, or on any information technology used or provided by the Contractor under this contract, including equipment provided by the Contractor's employees (section 102 of Division R of the Consolidated Appropriations Act, 2023 (Pub. L. 117-328));

(2) A Kaspersky Lab-covered article (Section 1634 of Division A of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91));

(3) Covered telecommunications equipment or services used as a substantial or essential component of any system, or as critical technology as part of any system (paragraphs (a)(1)(A) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)). This does not prohibit contractors from providing—

(i) A service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Prohibition on unmanned aircraft systems manufactured or assembled by American Security Drone Act—covered foreign entities.

(1) Prohibition. The Contractor is prohibited from—

(i) Delivering any FASC-prohibited unmanned aircraft system, which includes unmanned aircraft (i.e., drones) and associated elements (sections 1823 and 1826 of American Security Drone Act of 2023, within the National Defense Authorization Act for Fiscal Year 2024, Pub. L. 118-31, Div. A, Title XVIII, Subtitle B, 41 U.S.C. 3901 note prec.);

(ii) On or after December 22, 2025, operating a FASC-prohibited unmanned aircraft system in the performance of the contract (section 1824 of Pub. L. 118-31); and

(iii) On or after December 22, 2025, using Federal funds to procure or operate a FASC-prohibited unmanned aircraft system (section 1825 of Pub. L. 118-31).

(2) *Procedures*. The Contractor shall search SAM for the FASC-maintained list of American Security Drone Act—covered foreign entities before proposing, or using in performance of the contract, any unmanned aircraft system. Also, the Contractor shall ensure any effort or expenditure associated with a FASC-prohibited unmanned aircraft system is consistent with a corresponding exemption, exception, or waiver determination expressly stated in the contract.

(3) *Exemptions, exceptions, and waivers*. The prohibitions in paragraph (c) of this clause do not apply where the agency has determined an exemption, exception, or waiver applies, and the contract indicates that such a determination has been made. See sections 1823 through 1825 and 1832 of Public Law 118-31 for statutory requirements pertaining to exemptions, exceptions, and waivers.

(d) *Prohibition on using or providing specific products or services or conducting certain transactions regardless of connection to contract*.

(1) *Certain telecommunications and video surveillance equipment, systems, or services*.

(i) Unless an applicable waiver has been issued by the Government, the Contractor cannot use any equipment, systems, or services that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system (paragraph (a)(1)(B) of section 889 of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232)).

(ii) This prohibition applies to using covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. This does not prohibit the contractor from using—

(A) A service that connects to the facilities of a third party, such as backhaul, roaming, or interconnection arrangements; or

(B) Telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) *Office of Foreign Assets Control Restrictions*.

(i) Except as authorized by the Office of Foreign Assets Control (OFAC) in the Department of the Treasury, the Contractor shall not acquire, for use in the performance of this contract, any supplies or services if any proclamation, Executive order, or statute administered by OFAC, or if OFAC's implementing regulations at 31 CFR chapter V, would prohibit such a transaction by a person subject to the jurisdiction of the United States.

(ii) Except as authorized by OFAC, most transactions involving Cuba, Iran, and Sudan are prohibited, as are most imports from Burma or North Korea, into the United States or its outlying areas.

(A) For lists of entities and individuals subject to economic sanctions, see OFAC's List of Specially Designated Nationals and Blocked Persons at https://home.treasury.gov/policy-issues/financial-sanctions/specially-designated-nationals-and-blocked-persons-list-sdn-human-readable-lists.

(B) For more information about these restrictions, as well as updates, see OFAC's regulations at 31 CFR chapter V and at https://home.treasury.gov/policy-issues/office-of-foreign-assets-control-sanctions-programs-and-information.

(C) To conduct electronic screens of potential parties to regulated transactions, see the consolidated screening list at https://www.trade.gov/consolidated-screening-list, which consolidates multiple export screening lists of the Departments of Commerce, State, and the Treasury.

(3) *Sudan prohibition*. The Contractor is prohibited from conducting any restricted business operations in Sudan in accordance with Accountability and Divestment Act of 2007 (Pub. L. 110-174).

(4) *Iran prohibitions*.

(i) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, the contractor shall not engage in certain activities or transactions relating to Iran (section 6(b)(1)(A) of Iran Sanctions Act (50 U.S.C. 1701 note).

(ii) Unless an exception applies according to paragraph (d)(4)(iii) or the Government grants a waiver, contractor shall not export certain sensitive technology to Iran, as determined by the President, and has an active exclusion in SAM (22 U.S.C. 8515).

(iii) The prohibition in paragraphs (d)(4)(i) and (d)(4)(ii) do not apply if the acquisition is subject to trade agreements and the offeror certifies that all the offered products are designated country end products or designated country construction material (see part 25).

(iv) Unless an exception applies or the Government grants a waiver, contractors are prohibited from knowingly engaging in any significant transaction (i.e., over $10,000) with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked according to the International Emergency Economic Powers Act (section 6(b)(1)(B) of Iran Sanctions Act (50 U.S.C. 1701 note)).

(e) *Governmentwide exclusion and removal orders*.

(1) Unless the Government has issued an applicable waiver, contractors shall not provide or use as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order as follows:

(i) For solicitations and contracts awarded by a Department of Defense contracting office, DoD FASCSA orders apply.

(ii) For all other solicitations and contracts, DHS FASCSA orders apply.

(2) The Contractor shall search for the phrase "FASCSA order" in the System for Award Management (SAM) at https://www.sam.gov to locate applicable FASCSA orders.

(3) The Government may identify in the solicitation other FASCSA orders that are not in SAM, which are effective and apply to the solicitation and resulting contract.

(4) A FASCSA order issued after the date of solicitation applies to this contract only if added by an amendment to the solicitation or modification to the contract (see FAR 40.204-1(c)).

(f) *Reasonable inquiry*. The contractor shall conduct a reasonable inquiry to determine if there are any prohibited products or services. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(g) *Removal of prohibited products and services*. For Federal Supply Schedules, Governmentwide acquisition contracts, multi-agency contracts or any other procurement instrument intended for use by multiple agencies, upon notification from the Contracting Officer, during the performance of the contract, the Contractor shall promptly make any necessary

changes or modifications to remove any product or service produced or provided by a source that this clause prohibits.

(h) *General report*.

(1) If the Contractor identifies or is notified by any source, (including a subcontractor at any tier), that any product or service provided or used (or to be provided or used) during contract performance does not comply with any prohibition in this clause, then the Contractor shall report the following information, or as much information is known, in writing to the contracting office as identified in paragraph (h)(2) within 72 hours:

(i) Contract number and order number, if applicable;

(ii) The specific prohibition the product or service is not complying with;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));

(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the contractor would like the Government to consider a waiver, and asks for such a waiver);

(vii) Whether alternative products or services are available that would comply with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions implemented or recommended.

(2) If a report must be submitted to a contracting office, the Contractor shall submit the report as follows:

(i) If a Department of Defense contracting office, the Contractor shall report to the website at https://dibnet.dod.mil.

(ii) For all other contracting offices, the Contractor shall report to the Contracting Officer.

(iii) For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order.

(3) If the report provided does not contain any of the information required by paragraph (h)(1) of this clause, and the contractor later discovers new information that is required by paragraph (h)(1) of this clause, then the contractor shall submit a subsequent report within 72 hours of discovering the new information.

(4) The contractor shall also report the information in paragraph (h)(1) if the contractor wishes to ask for a waiver of the requirements of a new FASCSA order being applied through modification.

(i) *New FASCSA orders report*.

(1) During contract performance, the Contractor shall review SAM at least once every three months, or as advised by the Contracting Officer, to check for covered articles subject to FASCSA order(s), or for products or services produced by a source subject to FASCSA order(s) not currently identified under paragraph (e) of this clause.

(2) If the Contractor identifies a new FASCSA order(s) that could impact their supply chain, then the Contractor shall conduct a reasonable inquiry to identify whether a covered article or product or service produced or provided by a source subject to the FASCSA order(s) was provided to the Government or used during contract performance. The inquiry will look at any information in the entity's possession but does not need to include an internal or third-party audit.

(3) The Contractor shall submit a report to the contracting office identified in paragraph (h)(2) of this clause if the Contractor identifies, including through any notification by a subcontractor at any tier, that a covered article or product or service produced or provided by a source was provided to the Government or used during contract performance and is subject to a FASCSA order(s). For indefinite delivery contracts, the Contractor shall report to both the contracting office for the indefinite delivery contract and the contracting office for any affected order. The Contractor shall report the following information within 72 hours for each covered article or each product or service produced or provided by a source, where the covered article or source is subject to a FASCSA order:

(i) Contract number and order number, if applicable;
(ii) Name of the covered article or source subject to a FASCSA order;
(iii) The specific FASCSA order the product or service does not comply with;
(iv) The elements of (h)(1)(iii) through (ix) of this clause.

(j) Subcontracts. The Contractor shall insert the substance of this clause, including this paragraph (j) but excluding subparagraphs (d)(1) and (i)(1), in all subcontracts and other contractual instruments, including subcontracts for acquiring commercial products or commercial services.

(End of clause)

52.240-93 -- Basic Safeguarding of Covered Contractor Information Systems (DEVIATION Sep 2025)

(a) Definitions. As used in this clause—

Covered contractor information system means an information system that is owned or operated by a contractor that processes, stores, or transmits Federal contract information.

Federal contract information—

(1) Means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government; but

(2) Does not include information provided by the Government to the public (such as on public websites) or simple transactional information (such as information necessary to process payments).

Information means any communication or representation of knowledge such as facts, data, or opinions, in any medium or form, including textual, numerical, graphic, cartographic, narrative, or audiovisual (Committee on National Security Systems Instruction (CNSSI) 4009).

Information system means a discrete set of information resources organized for the collection, processing, maintenance, use, sharing, dissemination, or disposition of information (44 U.S.C. 3502).

Safeguarding means measures or controls that are prescribed to protect information systems.

(b) *Safeguarding requirements*.

(1) Basic requirements. The Contractor shall safeguard its covered contractor information systems by implementing, at minimum, the following security controls:

(i) Limit information system access to authorized users, processes acting on behalf of authorized users, or devices (including other information systems).

(ii) Limit information system access to the types of transactions and functions that authorized users are permitted to execute.

(iii) Verify and control/limit connections to and use of external information systems.

(iv) Control information posted or processed on publicly accessible information systems.

(v) Identify information system users, processes acting on behalf of users, or devices.

(vi) Authenticate (or verify) the identities of those users, processes, or devices, as a prerequisite to allowing access to organizational information systems.

(vii) Sanitize or destroy information system media containing Federal Contract Information before disposal or release for reuse.

(viii) Limit physical access to organizational information systems, equipment, and the respective operating environments to authorized individuals.

(ix) Escort visitors and monitor visitor activity; maintain audit logs of physical access; and control and manage physical access devices.

(x) Monitor, control, and protect organizational communications (i.e., information transmitted or received by organizational information systems) at the external boundaries and key internal boundaries of the information systems.

(xi) Implement subnetworks for publicly accessible system components that are physically or logically separated from internal networks.

(xii) Identify, report, and correct information and information system flaws in a timely manner.

(xiii) Provide protection from malicious code at appropriate locations within organizational information systems.

(xiv) Update malicious code protection mechanisms when new releases are available.

(xv) Perform periodic scans of the information system and real-time scans of files from external sources as files are downloaded, opened, or executed.

(2) Other requirements. This clause does not relieve the Contractor of any other specific safeguarding requirements specified by Federal departments and agencies relating to covered contractor information systems generally or other Federal safeguarding requirements for controlled unclassified information (CUI) as established by Executive Order 13556.

(c) Subcontracts. The Contractor shall include the substance of this clause, including this paragraph (c), in subcontracts under this contract (including subcontracts for the acquisition of commercial products, other than commercially available off-the-shelf items, or commercial services), in which the subcontractor may have Federal contract information residing in or transiting through its information system.

(End of clause)

52.244-6 -- Subcontracts for Commercial Products and Commercial Services (DEVIATION Apr 2026)

(a) *Definitions.* As used in this clause—

Commercial product, commercial service and nondevelopmental item have the meanings contained in Federal Acquisition Regulation (FAR) 2.101.

Subcontract has the meaning at FAR 44.401

(b) *Requirements*.

(1) To the maximum extent practicable, the Contractor shall incorporate, and require its subcontractors at all tiers to incorporate, commercial products, commercial services, or non-developmental items as components of items to be supplied under this contract.

(2) If a clause in the following table is included in the contract, the Contractor shall insert the clause in subcontracts for commercial products or commercial services and must flow down the requirements of the clause to subcontracts as indicated in the specific clause:

Number	Title	Date
52.203-13	Contractor Code of Business Ethics and Conduct	NOV 2021
52.203-17	Contractor Employee Whistleblower Rights	NOV 2023
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements	JAN 2017
52.204-9	Personal Identity Verification of Contractor Personnel	JAN 2011
52.219-8 *	Utilization of Small Business Concerns	JAN 2025
52.222-35	Equal Opportunity for Veterans	JUN 2020
52.222-36	Equal Opportunity for Workers with Disabilities	JUN 2020
52.222-37	Employment Reports on Veterans	JUN 2020

52.222-40	Notification of Employee Rights Under the National Labor Relations Act	DEC 2010
52.222-41	Service Contract Labor Standards	AUG 2018
52.222-50	Combating Trafficking in Persons	NOV 2021
52.222-50 with Alt I	Combating Trafficking in Persons, with its Alternate I	MAR 2015
52.222-51	Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment—Requirements	MAY 2014
52.222-53	Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services—Requirements	MAY 2014
52.222-54	Employment Eligibility Verification	JAN 2025
52.222-62	Paid Sick Leave Under Executive Order 13706	JAN 2022
52.222-90	Addressing DEI Discrimination by Federal Contractors	APR 2026
52.224-3	Privacy Training	JAN 2017
52.224-3 with Alt I	Privacy Training, with Alternate I	JAN 2017
52.225-26	Contractors Performing Private Security Functions Outside the United States	OCT 2016

52.232-40	Providing Accelerated Payments to Small Business Subcontractors	MAR 2023
52.240-91	Security Prohibitions and Exclusions	DATE
52.240-91 with Alt I	Security Prohibitions and Exclusions, with its Alternate I	DATE
52.240-92	Security Requirements	DATE
52.240-92 with Alt II	Security Requirements, with its Alternate II	DATE
52.247-64	Preference for Privately Owned U.S.-Flag Commercial Vessels	NOV 2021

* Include only if the subcontract offers further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.109(a) on the date of subcontract award, the subcontractor must include 52.219-8 in lower tier subcontracts that offer subcontracting opportunities.

(c) *Subcontracts*. The Contractor shall include the terms of this clause, including this paragraph (c), in subcontracts awarded under this contract.

(End of clause)

52.252-6 -- Authorized Deviations in Clauses (Nov 2020)

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of “(DEVIATION)” after the date of the clause.

(b) The use in this solicitation or contract of any Transportation Acquisition Regulation (48 CFR 12) clause with an authorized deviation is indicated by the addition of “(DEVIATION)” after the name of the regulation.

(End of clause)

2. TRANSPORTATION ACQUISITION REGULATION (TAR)

Clauses Incorporated by Reference

The following Transportation Acquisition Regulation clauses are incorporated by reference with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at

https://www.transportation.gov/assistant-secretary-administration/procurement/tar-part-1252-solicitatons-provisions-and-contract

1252.222-70 -- Strikes or Picketing Affecting Timely Completion of the Contract Work (Nov 2022)
1252.222–72 -- Contractor Cooperation in Equal Employment Opportunity and Anti-Harassment Investigations (Nov 2022)
1252.223-71 -- Accident and Fire Reporting (Nov 2022)
1252.242-71 -- Contractor Testimony (Nov 2022)
1252.242-72 -- Dissemination of Contract Information (Nov 2022)

(End of clause)

1252.232-70 -- Electronic Submission of Payment Requests (Nov 2022) [(DEVIATION Aug 2025)]

(a) Definitions. As used in this clause—
(1) Contract financing payment has the meaning given in FAR 32.001.
(2) Payment request means a bill, voucher, invoice, or request for contract financing payment or invoice payment with associated supporting documentation. The payment request must comply with the requirements identified in FAR 32.905(b), “Content of Invoices,” this clause, and the applicable Payment clause included in this contract.
(3) Electronic form means an automated system transmitting information electronically according to the accepted electronic data transmission methods and formats identified in paragraph (c) of this clause. Facsimile, email, and scanned documents are not acceptable electronic forms for submission of payment requests.
(4) Invoice payment has the meaning given in FAR 32.001.

(b) Electronic payment requests. Except as provided in paragraph (e) of this clause, the contractor shall submit payment requests in electronic form. Purchases paid with a Governmentwide commercial purchase card are considered to be an electronic transaction for purposes of this rule, and therefore no additional electronic invoice submission is required.

(c) Processing system. The Department of Transportation utilizes the DELPHI system for processing invoices. The DELPHI module for submitting invoices is called iSupplier. Access to DELPHI is granted with electronic authentication of credentials (name & valid email address) utilizing the GSA credentialing platform login.gov. Vendors submitting invoices are required to submit invoices via iSupplier (DELPHI) and authenticated via www.login.gov.

(d) Invoice requirements. To receive payment and in accordance with the Prompt Payment Act, all invoices submitted as attachments in iSupplier (DELPHI) shall contain the following:
(1) Invoice number and invoice date.
(2) Period of performance covered by invoice.
(3) Contract number and title.
(4) Task/Delivery Order number and title (if applicable).
(5) Amount billed (by CLIN), current and cumulative.
(6) Total ($) of billing.
(7) Cumulative total billed for all contract work to date.
(8) Name, title, phone number, and mailing address of person to be contacted in the event of a defective invoice.

(9) Travel. If the contract includes allowances for travel, all invoices which include charges pertaining to travel expenses will catalog a breakdown of reimbursable expenses with the appropriate receipts to substantiate the travel expenses.

[(10) The following statement "The Contractor certifies that by submitting this invoice to the Government, the supplies and/or services billed have been shipped rendered or delivered In accordance with instructions issued by the ordering officer; that they are reflected In the quantities and/or period of performance stated on the invoice; and that such supplies and/or services conform to the quantity and quality requirements specified In the applicable contracts orders or blanket purchase agreement.

Furthermore, pursuant to Executive Order 14173, Ending Illegal Discrimination And Restoring Merit-Based Opportunity, the Contractor certifies that it Is In compliance with the Equal Protection principles of the Constitution and all applicable Federal anti-discrimination laws, and acknowledges that such compliance is material to the Government's payment decision under the False Claims Act (31 U.S.C. § 3729(b)(4)). The Contractor also affirms that it does not operate any diversity, equity, and inclusion (DEI) initiatives that are inconsistent with the Equal Protection principles of the Constitution and the non-discrimination requirements of Federal laws as interpreted by the Supreme Court In Students for Fair Admissions v. Harvard, 600 U.S. 181 (2023)."]

(e) Payment system registration. All persons accessing the iSupplier (DELPHI) will be required to have their own unique user ID and password and be credentialed through login.gov.

(1) Electronic authentication. See www.login.gov for instructions.

(2) To create a www.login.gov account, the user will need a valid email address and a working phone number. The user will create a password and then www.login.gov will reply with an email confirming the email address.

(3) iSupplier (DELPHI) registration instructions: New users should navigate to: http://einvoice.esc.gov to establish an account. Users are required to log in to iSupplier (DELPHI) every 45 days to keep it active.

(4) Training on DELPHI. To facilitate use of DELPHI, comprehensive user information is available at http://einvoice.esc.gov.

(5) Account Management. Vendors are responsible to contact their assigned COR when their firm's points of contacts will no longer be submitting invoices, so they can be removed from the system.

(f) Waivers. For contractors/vendors who are unable to utilize DOT's DELPHI system, waivers may be considered by DOT on a case-by-case basis. Vendors should contact their Contracting Officer's Representative (COR) for procedures.

(g) Exceptions and alternate payment procedures. If, based on one of the circumstances set forth in 1232.7002(a) or (b), and the contracting officer directs that payment requests be made by mail, the contractor shall submit payment requests by mail through the United States Postal Service to the designated agency office. If alternate payment procedures are authorized, the Contractor shall include a copy of the Contracting Officer's written authorization with each payment request. If DELPHI is succeeded by later technology, the Contracting Officer will supply the Contractor with the latest applicable electronic invoicing instructions.

(End of clause)

3. FEDERAL HIGHWAY ADMINISTRATION LOCAL

FHWA-001 -- Payment and Final Invoice

(a) Payment for the order shall be provided under the lump sum quote amount. Compensation is full payment for providing all supplies and/or performing all work in a complete and acceptable manner. All risk, loss, damage, or expense arising out of the nature or prosecution of the work is included in the compensation provided by the lump sum quote amount.

(b) For firm-fixed-price (FFP) contracts where supplies are delivered or services are performed, the final invoice is not subject to further contract settlement actions between the Government and the Contractor.

(c) For non-FFP contracts, further contract settlement actions may exist where final invoices are not to be submitted yet until these contract settlement actions are resolved. For these contracts, the Contracting Officer will process final invoices as a routine part of the closeout process. When requested, the Contractor shall submit the final invoice directly to the Contracting Officer/Contract Specialist along with the final closeout documents. When the final invoice is ready for payment, the Contracting Officer will inform the Contractor that the final invoice can be submitted through the iSupplier system.

(End of clause)

FHWA-002 -- Post-Award Evaluation of Contractor Performance

(a) Interim and final evaluations of contractor performance may be prepared for this order in accordance with FAR 42.1502 and TAM 1242.1502. The final performance evaluations will be prepared at the time of completion of work.

(b) The Contractor can elect to review the evaluation and submit additional information or provide a rebuttal statement. The contractor will be permitted 60 calendar days to respond from the date of receipt of the evaluation. The contractor's response is voluntary. If the contractor does not respond within 60 days, the Government will presume that the Contractor has no comment. Any disagreement between the parties regarding an evaluation will be referred to an individual at a level above the Contracting Officer, whose decision is final.

(c) Copies of the evaluations, Contractor responses and review comments, if any, will be retained as part of the contract file, and may be used to support future award decisions.

(d) The Federal Highway Administration utilizes the Contractor Performance Assessment Reporting System (CPARS) to record and maintain past performance information. CPARS hosts a suite of web-enabled applications that are used to document contractor performance information that is required by Federal Regulations. The CPARS module assesses performance on contracts for Systems, Services, Information Technology, and Operations Support; Architect-Engineer contracts; and Construction contracts. Reference material can be accessed in CPARS.

(e) The registration process requires the Contractor to identify an individual that will serve as a primary contact. This individual will be authorized to access the evaluation for review and comment. In addition, the Contractor is encouraged to identify a secondary contact in the event the primary contact is unavailable to process the evaluation within the required 60-day period. After the FHWA Focal Point registers the contract in CPARS, the contractor

representative will receive a system-generated email notifying him/her that the contract is registered. A system-generated email will also provide the Contractor with a User ID if the person does not already have a CPARS User ID.

(f) After a performance evaluation has been prepared and is ready for comment, the Contractor representative will receive a system-generated email notification that the performance evaluation is electronically available for review and comment. The Contractor representative will receive an automated email whenever an assessment is completed and can subsequently retrieve the completed assessment from CPARS for review and comment.

(End of clause)

FHWA-003 -- Government Technical Point of Contact (TPOC)

(a) The Contracting Officer is the only individual authorized to enter into or terminate this contract, modify any term or condition of this contract, waive any requirement of this contract, or accept nonconforming work delivered under this contract.

(b) The Contracting Officer will designate a Government Technical Point of Contact (TPOC) at the time of contract award. The TPOC's responsibilities will include technical monitoring of the Contractor's performance and inspecting and accepting deliveries under the contract. The TPOC will be appointed in writing, at which time ALL the responsibilities of the TPOC will be detailed, and a copy of the appointment memorandum will be furnished to the Contractor. Any changes to the TPOC delegation will be made in writing, either by changes to the existing memorandum or by the issuance of a new appointment memorandum. Copies of any changes will be provided to the Contractor.

(c) The TPOC is not authorized to perform, formally or informally, any of the following actions:
(1) Promise, award, agree to award, or execute any contract, contract modification, or notice of intent that changes or may change this contract;
(2) Waive or agree to any modification of the delivery schedule;
(3) Make any final decision on any contract matter subject to the Disputes Clause;
(4) Terminate, for any reason, the Contractor's right to proceed, or issue any order causing the Contractor to stop work;
(5) Obligate in any way, the payment of money by the Government.

(d) The Contractor shall comply with the written or oral direction of the Contracting Officer or authorized representative(s) acting within the scope and authority of the appointment memorandum. The Contractor need not proceed with directions that it considers to have been issued without proper authority. The Contractor shall notify the Contracting Officer in writing, with as much detail as possible, when the TPOC has taken an action or has issued direction (written or oral) that the Contractor considers exceeding the TPOC's appointment, within 3 days of the occurrence. Unless otherwise provided in this contract, the Contractor assumes all costs, risks, liabilities, and consequences of performing any work it is directed to perform that falls within any of the categories defined in paragraph (c) prior to receipt of the Contracting Officer's response issued under paragraph (e) of this clause.

(e) The Contracting Officer shall respond in writing within 30 days to any notice made under paragraph (d) of this clause. A failure of the parties to agree upon the nature of a direction, or upon the contract action to be taken with respect thereto, shall be subject to the provisions of the Disputes clause of this contract.

(f) The Contractor shall provide copies of all correspondence to the Contracting Officer and the TPOC.

(g) Any action(s) taken by the Contractor, in response to any direction given by any person acting on behalf of the Government or any Government official other than the Contracting Officer or the TPOC acting within his or her appointment, shall be at the Contractor's risk.

(End of Clause)

SECTION D – STATEMENT OF WORK

1. BACKGROUND

Western Federal Lands Highway Division (WFLHD), a division of the US Department of Transportation – Federal Highway Administration, designs and administers, primarily, road construction projects on Federal Lands in the states of Alaska, Washington, Oregon, Idaho, Montana, and Wyoming.

2. OBJECTIVE

The objective of this requirement is to support and maintain WFLHD operations during the Division Office Facility Renovation by obtaining prefabricated modular office building(s), single-wide container/modular office units, and an executive restroom trailer on a temporary lease basis, including professional delivery, site preparation, installation, utility connection, preventative maintenance, weekly septic pumping maintenance, technical troubleshooting support, and eventual teardown/demobilization.

3. LOCATION

The delivery and service location shall be at the WFLHD secure federal facility located at 610 East Fifth Street, Vancouver, Clark County, WA 98661-3801.

The Contractor must coordinate the delivery schedule, truck access, and exact site placements with the Technical Point of Contact (TPOC) at least 10 business days prior to on-site delivery. This coordination is critical to ensure that delivery vehicles can access the compound and that drop zones are clear of obstruction. The Contractor is responsible for preparing the sites, offloading, setup, and placing/setting all units.

4. PERFORMANCE PERIOD

It is anticipated that the work listed in this order shall be completed over a period of twenty-four (24) months beginning approximately 01-Feb-2027 and ending approximately 31-Jan-2029

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5. REQUIREMENT DESCRIPTION

The Contractor shall provide the following supplies and maintenance services:

- Procure and supply one pre-engineered prefabricated modular office building of approximately 24' x 60' (1,440 SQFT) containing a minimum of three offices, one small secure meeting room, and two conference rooms, fully compliant with local commercial building codes.

- Procure and supply two 8' x 40' Office Containers or Modular units (fully finished, with active HVAC systems and full office finishes).

- Procure and supply one modern, climate-controlled executive restroom trailer (3-station minimum).

- Manage and execute the transport of all modular units on a commercial carrier, F.O.B. Destination, to the Vancouver, Washington compound.

- Provide complete site preparation services, including minor grading and leveling of all designated site areas to support solid, level footing for the modular units.

- Perform professional installation, including block & level setup for the 24' wide multi-plex, 8' wide single-wide unit, and restroom trailer.

- Construct, wire, and certify full utility service connections from the modular buildings' distribution panels to the closest WFLHD building electrical distribution panels.

- Perform post-installation inspection and leveling adjustments between 30 and 60 days following initial occupancy to ensure long-term stability and code compliance.

- Provide weekly septic sanitation pumping services, freshwater holding tank refills, winterization assistance, technical troubleshooting, and general routine maintenance of all integrated trailer systems.

5.1. Task 1: Modular unit lease. The contractor shall lease to WFLHD the following pre-engineered modular units for a firm-fixed lease term of twenty-two (22) months. All units shall be delivered fully operational and turnkey ready for immediate use and occupancy no later than 01-MAR-2027.

5.1.1. Task 1.1: Double-wide modular office trailer (24' x 60'). Provide 1 pre-engineered double-wide modular office building of approximately 24 feet by 60 feet (1,440 SQFT interior area). The modular office building shall feature an integrated interior floor plan configured containing a minimum of 3 offices, 1 small secure meeting room, and 2 conference rooms and be fully ADA compliant. Functional bathrooms are not required in this office space.

Refer to Attachment 0001 for proposed floor plan layout. Alternative layouts will be considered and deemed appropriate ***IF*** overall room quantities and capacity needs are met.

5.1.2. Task 1.2: Single-wide container/modular office (8' x 40'). Provide 2 pre-engineered, single-wide 8' x 40' containers or modular office units (320 SQFT interior area). The units shall feature full HVAC capability (minimum 1.5-ton capacity), commercial-grade finishes, insulated walls, high-durability VCT or commercial carpet flooring, a minimum of one exterior door with locksets, and high-efficiency LED or fluorescent ceiling fixtures.

5.1.3. Task 1.3: Restroom trailer (3-station minimum). Provide 1 fully self-contained, temporary restroom trailer with a minimum three (3) station configuration. The unit delivered must be no older than seven (7) years.

5.2. Task 2: Professional installation & ancillary services. The contractor shall perform all necessary set-up services under, ensuring completely safe, stable, and regulatory-compliant structures. Task 2 services shall include:

5.2.1. Site leveling and preparation: The contractor shall be responsible for any minor leveling and site preparation of the existing gravel/asphalt base at all designated compound sites to guarantee solid, level, and stable footings for the modular units.

5.2.2. Block and level set: The contractor shall block, level, and structural-couple the 24' wide multiplex sections, and independently block, level, and secure the 8' wide single-wide container office and the restroom trailer in accordance with local guidelines, manufacturer specifications, and standard tie-down anchoring protocols.

5.2.3. Noise mitigation: The contractor shall install sound-dampening interior walls (minimum STC 40+ rating) to divide the 24' x 60' interior space into three offices, one small secure meeting room, and two conference rooms. The 8' x 40' unit shall remain a wide-open configured administrative workspace with no interior partitions.

5.2.4. Skirting and site aesthetics: The contractor shall supply and install matching high-durability hardboard or vinyl skirting around the complete exterior perimeter of both office foundations (representing approximately 168 linear feet for the 24' x 60' unit and approximately 96 linear feet for the 8' x 40' unit) to protect the sub-floor area and maintain visual compound standards.

5.2.5. OSHA steps and ADA ramps: The contractor shall supply, install, and lease three complete access packages:

- DOUBLE-WIDE OFFICE (24' X 60'): 1 OSHA-compliant aluminum step system with a 40" x 60" landing and handrails, and 1 ADA/IBC-compliant 30-foot aluminum ramp system with a 60" x 60" switchback landing and continuous handrails.
- SINGLE-WIDE OFFICE (8' X 40'): As needed, 2 additional OSHA-compliant aluminum step systems with landing or an ADA-compliant ramp system.
- RESTROOM TRAILER: 1 OSHA-compliant aluminum step system with landing or ADA-compliant ramp system as designated by the TPOC.

5.2.6. Utility connections: The contractor shall complete and certify electrical service connections for all units. This includes laying properly sized, weather-insulated commercial-grade wiring and circuit breakers from the 24' x 60' unit's 125-amp panel and the 8' x 40' unit's 100-amp or 125-amp panel to the nearest designated WFLHD compound distribution panel in compliance with NEC and local standards. The contractor shall connect initial municipal water (via standard hose) and electrical lines (standard 120V) for the restroom trailer.

5.2.7. Post-installation re-leveling: The contractor shall return to the project site to re-verify leveling and adjust stability jacks for all units no earlier than 30 days and no later than 60 days following initial setup to correct standard structural settling.

5.3. Task 3: Monthly maintenance and lease technical support. Throughout the active lease, the contractor shall maintain full commercial warranty coverage and provide technical support for all structural, electrical, and mechanical systems across all leased units. WFLHD shall not be responsible for standard wear-and-tear repairs. The contractor shall coordinate and perform quarterly preventative maintenance checks on the commercial HVAC units and utility connections for both office facilities.

5.3.1. Task 3.1: Routine maintenance, septic pumping, and support services. The contractor shall perform scheduled septic pumping, greywater/waste tank management, freshwater replenishment, and standard technical repairs to ensure continuous, reliable, and sanitary trailer operations throughout the entire lease period. Services shall include:

- SEPTIC PUMPING SERVICE: Execute scheduled waste extraction and septic pumping services at least once per week (minimum 1x weekly) utilizing a certified sanitation pumper truck, maintaining odor-free operation and adequate holding tank capacity.
- FRESHWATER REFILLS: Coordinate and perform freshwater tank replenishment (minimum 150-gallon capacity on trailer) to ensure reliable supply for handwashing sinks and toilet flushing systems.
- INITIAL STOCKING OF SUPPLIES: Deliver the restroom trailer fully stocked with starting hygiene supplies, including dissolve-ready toilet paper installed on wall mounts, paper towels in dispenser units, and liquid hand soap in dispenser units.
- REGULAR TECHNICAL MAINTENANCE & REPAIRS: Deliver prompt technical support, repair labor, and replacement parts for standard plumbing, HVAC climate control, electrical, and structural systems at no additional cost to the Government.
- WINTERIZATION AND COLD WEATHER SUPPORT: Provide heated water connection recommendations, tank winterization assistance, and heated garden hose accessories to ensure freezing protection during cold winter operational periods.
- ACCOUNT MANAGEMENT: Assign an Account Manager to oversee scheduled septic pumpers, answer technical questions, and resolve administrative or operational concerns during the rental term.

5.4. Task 4: Teardown, demobilization, and site restoration. At the conclusion of the lease, the contractor shall perform complete demobilization services within 30 calendar days. The contractor shall dismantle step and ramp systems, strip exterior skirting from all units, decouple the 24' x 60' multi-plex sections, perform final septic pumping and deep sanitization on the restroom trailer, disconnect all temporary utility hookups, and transport all leased assets off the WFLHD compound. The contractor is responsible for all return freight charges and shall restore all compound sites to their original clean, vacant, and level condition.

6. TECHNICAL AND MATERIALS QUALITY CRITERIA

All temporary facilities leased to WFLHD must meet or exceed the following Technical and Materials Quality Criteria:

6.1. General code compliance & accessibility (all units)

6.1.1. Structural code compliance. The entire structure of all units, including materials, insulation, emergency egress, and load ratings, must comply with International Building Code (IBC) standards for commercial occupancy. Standard residential units meeting only residential codes (IRC) are strictly prohibited.

6.1.2. Accessibility ramps and landings: Leased aluminum ramp systems with continuous, non-slip surfaces must be provided at entry doorways in compliance with ADA and IBC accessibility guidelines.

6.1.3. Exterior doors & lighting: All exterior entry doors must include commercial cylinder locksets, weatherstripping, and exterior wall-mounted LED security fixtures.

- 24' X 60' UNIT: Minimum of two exterior doors.
- Two 8' X 40' UNITS: Minimum of one exterior door.
- RESTROOM TRAILER: Dedicated exterior entry doors for separate men's and women's suites.

6.2. Modular office facilities (24' x 60' & 8' x 40')

6.2.1. 24' x 60' Unit:

- INTEGRATED HVAC SYSTEM with a minimum 2.0-ton cooling capacity and professionally balanced ductwork serving all offices, meeting and conference rooms simultaneously.
- ACOUSTICS AND PARTITIONS: Interior office partitions must have upgraded sound-dampening qualities (minimum STC rating of 40+) to allow confidential business meetings and focused work. Partition walls must consist of a minimum of painted sheetrock or foam-core panels with metal 'H' track systems, rising securely from floor to ceiling.
- DATA AND TELECOMMUNICATIONS PRE-WIRING: The 24' x 60' building must include a dedicated utility closet to house a pre-wired, rack-mounted 48-port RJ-45 Category 6 (Cat6) data patch panel. Every office must contain a minimum of two (2) dual Cat6 data drops, and conference rooms must contain a minimum of four (4) dual Cat6 data drops. Electrical pre-wiring must provide 110V commercial outlets supporting a minimum of twelve (12) active devices in the utility closet.

6.2.2. 8' x 40' Units: Integrated commercial HVAC system with a minimum 1.5-ton cooling capacity to serve the open-plan work area.

6.2.3. Lighting & electrical controls: High-efficiency LED or fluorescent troffer ceiling fixtures with individual wall switches for all offices, meeting and conference rooms, and open work areas.

6.2.4. Interior flooring & trim: Commercial-grade, low-VOC carpet tile or high-durability vinyl composition tile (VCT) with commercial vinyl base molding on all interior walls.

6.3. Restroom trailer (3-station minimum / executive configuration)

6.3.1. Layout & station capacity: 3-station configuration minimum. Each suite must include a vanity and private toilet stall, with one of the suites including a waterless urinal with privacy screen.

6.3.2. Integrated climate control / HVAC: High-efficiency AC units and integrated heat strips (with a 3–4 season cold-weather arctic package) to sustain interior temperatures between 68°F and 74°F year-round.

6.3.3. Water & waste tank capacities: Minimum 150-gallon integrated freshwater holding tank and minimum 560-gallon integrated waste septic holding tank.

6.3.4. Utility power & water connections: Powered via standard 120V electrical connections (requiring no more than 3–4 standard 30 AMP power cords). Water supply connects to municipal pressurized water via heavy-duty commercial hose (heated garden hose required during winter months).

6.3.5. High-end interior materials & finishes: Executive-level environment featuring fiberglass walls, vinyl trim, poly base cabinets, high-durability VCT or jet-tile rolled flooring, drop-in white porcelain sinks, solid surface countertops, vanity mirrors, and integrated warm lighting.

7. INSPECTION AND ACCEPTANCE

All supplies and/or work hereunder shall be subject to review by the Government. The designated Technical Point of Contact (TPOC) is responsible for the physical inspection, testing, and formal acceptance of all incoming shipments, installation services, and utility connections. Final acceptance of the temporary modular office trailer, container office, and restroom trailer, confirming they are fully functional and ready for immediate federal occupancy, shall be made in writing by TPOC.

8. GOVERNMENT ACCEPTANCE PERIOD

Unless stated elsewhere, the FHWA will have 10 calendar days from the date of physical delivery to review, inspect, and test the physical containers/modular units and submit any non-conformance comments. The Contractor shall have five calendar days from receipt of comments to make revisions, address any defects, or replace non-conforming units. Upon receipt of the corrected deliverables, WFHD will have five calendar days for final review prior to formal written acceptance.

9. AUTHORITY TO OBLIGATE THE GOVERNMENT

The Contracting Officer is the only individual who can legally commit or obligate the Government to the expenditure of public funds. No cost chargeable to the proposed task order can be incurred before receipt of a fully executed task order or specific authorization from the Contracting Officer.

10. ANTI-DEFICIENCY

Unless otherwise authorized by Public Law or Federal Regulation, nothing contained herein shall be construed as binding the Government to expend, in any one fiscal year, any sum in excess of the appropriation made by Congress for that fiscal year in furtherance of the matter of the contract or to involve the Government in an obligation for the future expenditure of monies before an appropriation is made (Anti-Deficiency Act, 31 U.S.C. 1341.A.1).

11. INDEMNIFICATION

Any indemnification language contained in standard form agreements executed between the Government and the Contractor shall be binding upon the Government only to the extent authorized by law, opinions of the Government Accountability Office and the Federal Tort Claims Act (28 U.S.C. §§ 2671-2680).

12. PAYMENT FOR UNAUTHORIZED WORK

No payments will be made for any unauthorized supplies and/or services or for any unauthorized changes to the work specified herein. This includes any services performed by the Contractor of their own volition or at the request of an individual other than a duly appointed Contracting Officer. Only a duly appointed Contracting Officer is authorized to change the specifications, terms, and conditions under this effort.

13. CLOSEOUT OF CONTRACT FILES

The Government will initiate the administrative close-out of the Task Order after receiving evidence that all technical requirements have been completed. The Contractor shall furnish all required documents in support of the closeout of this contract.

The Government anticipates the timeframe to complete the administrative close-out of this order will not exceed 30 days. The costs incurred in the administrative closeout of task orders and contract files are unallowable direct costs under the contract and, therefore, cannot be charged as direct costs to the Government. Contractors are to handle such costs in accordance with their disclosure statements/cost accounting systems.

14. LIST OF ATTACHMENTS

Attachment 0001 – Proposed 24' x 60' Floor Plan Layout

Attachment 0002 – Offeror Work Experience form

Attachment 0003 – Past Performance Questionnaire

Attachment 0004 – Department of Labor Service Contract Act Wage Determination

RESERVED

SECTION E – SOLICITATION PROVISIONS

1. REPRESENTATIONS, CERTIFICATIONS, AND OTHER STATEMENTS OF QUOTER

The offeror makes the following representations and certifications as a part of its quote.

NOTICE:

System updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in agency solicitations. Examples include 52.222-25, Affirmative Action Compliance, 52.223-22, Public Disclosure of Greenhouse Gas Emissions and Reduction Goals—Representation, and paragraph (d) of 52.212-3, Offeror Representations and Certifications—Commercial Products and Commercial Services. Contracting officers will not consider these representations when making award decisions or enforce requirements. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

52.204-5 -- Women-Owned Business (Other Than Small Business) (Oct 2014)

(a) *Definition.* "Women-owned business concern," as used in this provision, means a concern that is at least 51 percent owned by one or more women; or in the case of any publicly owned business, at least 51 percent of its stock is owned by one or more women; and whose management and daily business operations are controlled by one or more women.

(b) *Representation*. [*Complete only if the offeror is a women-owned business concern and has not represented itself as a small business concern in FAR 52.219-1, Small Business Program Representations, in their Federal Government contracts registration in SAM.gov:.]* The offeror represents that it [ ] is a women-owned business concern.

(End of provision)

52.209-2 -- Prohibition on Contracting with Inverted Domestic Corporations-Representation (DEVIATION Sep 2025)

(a) *Definitions*. As used in this clause—

Inverted domestic corporation means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395(b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Subsidiary means an entity in which more than 50 percent of the entity is owned—
(1) Directly by a parent corporation; or
(2) Through another subsidiary of a parent corporation.

(b) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-3(b) applies or the requirement is waived in accordance with the procedures at 9.108-5.

(c) *Representation*. The Offeror represents that-
(1) It [ ] is, [ ] is not an inverted domestic corporation; and

(2) It [ ] is, [ ] is not a subsidiary of an inverted domestic corporation.

(End of provision)

52.209-11 -- Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law (DEVIATION Sep 2025)

(a) The Government will not enter into a contract with any corporation that—
(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or
(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that–
(1) It is [ ] is not [ ] a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and
(2) It is [ ] is not [ ] a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

52.219-1 -- Small Business Program Representations (DEVIATION Nov 2025)

(a) *Definitions*. As used in this provision-

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business concern eligible under the WOSB Program.

HUBZone small business concern means a small business concern that meets the requirements described in 13 CFR 126.200, is certified by the Small Business Administration (SBA) and designated by SBA as a HUBZone small business concern in the Small Business Search (SBS) (13 CFR 126.103).

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300.

Small business concern—

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (b) of this provision.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern means a small business concern that-

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by one or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States, and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals who meet the criteria in paragraph (1) of this definition.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127) means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)(1) The North American Industry Classification System (NAICS) code for this acquisition is ***532490, Other Commercial and Industrial Machinery and Equipment Rental and Leasing***.

(2) The small business size standard is ***$40.0 million***.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce (*i.e.*, nonmanufacturer), is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition—

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(c) *Representations.*

(1) The offeror represents as part of its offer that—

(i) it [ ] is, [ ] is not a small business concern; or

(ii) It [ ] is, [ ] is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture:* _____.]

(2) [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.]* The offeror represents that it [ ] is, [ ] is not a women-owned small disadvantage business concern.

(3) *Women-owned small business (WOSB) joint venture eligible under the WOSB Program.* The offeror represents as part of its offer that it [ ] is, [ ] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture:* _____.]

(4) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The offeror represents as part of its offer that it [ ] is, [ ] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture:* _____.]

(5) *SDVOSB joint venture eligible under the SDVOSB Program*. [*Complete only if the offeror is certified as a SDVOSB concern*]. The offeror represents as part of its offer that it [ ] is, [ ] is not a SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [*The offeror shall enter the name and unique entity identifier of each party to the joint venture:*_____.]

(6) *HUBZone joint venture eligible under the HUBZone Program.* [*Complete only if the offeror is a HUBZone small business concern.*] The offeror represents, as part of its offer, that it [ ] is, [ ] is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture:* _____.] Each HUBZone small business concern participating in the HUBZone joint venture must be certified as a HUBZone concern.

(d) *Notice.* Under 15 U.S.C. 645(d), any person who misrepresents a firm's status as a business concern that is small, HUBZone small, small disadvantaged, service-disabled veteran-owned small, economically disadvantaged women-owned small, or women-owned small eligible under the WOSB Program in order to obtain a contract to be awarded under the preference programs established pursuant to section 8, 9, 15, 31, and 36 of the Small Business Act or any other provision of Federal law that specifically references section 8(d) for a definition of program eligibility, will be—

(1) Punished by imposition of fine, imprisonment, or both;

(2) Subject to administrative remedies, including suspension and debarment; and

(3) Ineligible for participation in programs conducted under the authority of the Act.

(End of provision)

52.223-1 -- Biobased Product Certification (Dec 2025)

As required by the Farm Security and Rural Investment Act of 2002 (7 U.S.C. 8101(4)) and the Energy Policy Act of 2005 (7 U.S.C. 8102(a)(2)(F)), the Offeror certifies, by signing this offer, that biobased products (within categories of products listed by the United States Department of Agriculture at https://www.biopreferred.gov/resources/categories.html to be used or delivered in the performance of the contract, other than biobased products that are not purchased by the Offeror as a direct result of this contract, will comply with the applicable specifications or other contractual requirements.

(End of provision)

FAR 52.240-90 -- Security Prohibitions and Exclusions Representations and Certifications (DEVIATION Nov 2025)

(a) *Definitions.* As used in this provision-—

Backhaul, covered article, covered telecommunications equipment or services, critical

technology, FASCSA order, Intelligence community, interconnection arrangements, national security system, roaming, sensitive compartmented information, sensitive compartmented information system, source, and substantial or essential component have the meanings provided in the clause 52.240-91, Security Prohibitions and Exclusions.

Business operations means engaging in commerce in any form, including by acquiring, developing, maintaining, owning, selling, possessing, leasing, or operating equipment, facilities, personnel, products, services, personal property, real property, or any other apparatus of business or commerce.

Marginalized populations of Sudan means—

(1) Adversely affected groups in regions authorized to receive assistance under section 8(c) of the Darfur Peace and Accountability Act (Pub. L. 109-344) (50 U.S.C. 1701 note); and

(2) Marginalized areas in Northern Sudan described in section 4(9) of such Act.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

(1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;

(2) Are conducted under specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;

(3) Consist of providing goods or services to marginalized populations of Sudan;

(4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;

(5) Consist of providing goods or services that are used only to promote health or education; or

(6) Have been voluntarily suspended.

Sensitive technology—

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—

(i) To restrict the free flow of unbiased information in Iran; or

(ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

(b) *Procedures*.

(1) *Covered telecommunications and video surveillance*. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at https://www.sam.gov for entities excluded from receiving federal awards for “covered telecommunications equipment or services.”

(2) *FASCSA Orders*.

(i) The Offeror shall search in SAM for the phrase “FASCSA order” for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (e) of FAR 52.240-91, Security Prohibitions and Exclusions.

(ii) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM

but are effective and apply to the solicitation and resultant contract (see FAR 40.204-1(c)(2)).

(iii) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(c) *Covered telecommunications equipment or services representations*. By submission of its offer, the Offeror represents that, after conducting a reasonable inquiry (that looks at any information in the Offeror's possession but does not need to include an internal or third-party audit)—

(1) It will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation, except as waived by the solicitation, or as disclosed in paragraph (g); and

(2) It does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services, except as waived by the solicitation, or as disclosed in paragraph (g).

(d) *FASCSA Representation*. By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (g). A reasonable inquiry will look at any information in the offeror's possession but does not need to include an internal or third-party audit.

(e) *Sudan certification*. By submission of its offer, the offeror certifies, after conducting a reasonable inquiry (that looks at any information in the offeror's possession but does not need to include an internal or third-party audit), that the offeror does not conduct any restricted business operations in Sudan.

(f) *Iran Representation and Certifications*.

(1) Except as provided in paragraph (f)(2) of this provision or if a waiver has been granted in accordance with FAR 40.203-3, the offeror, after conducting a reasonable inquiry (that looks at any information in the offeror's possession but does not need to include an internal or third-party audit), by submission of its offer—

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person (as defined at section 15 of the Iran Sanctions Act of 1996, Pub. L. 104-172, 50 U.S.C. 1701 note) owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Act. These sanctioned activities are in the areas of development of the petroleum resources of Iran, production of refined petroleum products in Iran, sale and provision of refined petroleum products to Iran, and contributing to Iran's ability to acquire or develop certain weapons or technologies; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds $10,000 with Iran's Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 et seq.) (see OFAC's Specially Designated Nationals and Blocked Persons List at https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx)

(2) Exception for trade agreements. The representation and certification requirements of paragraph (f)(1) of this provision do not apply if—

(i) This solicitation includes a trade agreements notice or certification (e.g., 52.225-6, Trade Agreements Certificate); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products or designated country construction material.

(iii) The offeror shall email questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(g) *Disclosure*.

(1) If the Offeror is not able to represent compliance with the prohibitions in paragraphs (c) or (d), then the Offeror shall disclose within 72 hours to the contracting office identified in paragraph (g)(2) the following information for each product or service not compliant:

(i) Contract number and order number, if applicable;

(ii) Identification of whether this disclosure relates to paragraph (c) on covered telecommunication equipment or services, or to paragraph (d) on FASCSA orders;

(iii) A description of the products or services that the Contractor identifies or has reason to suspect is prohibited (include brand; model number, such as the original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable);

(iv) The entity that produced the product or service (include entity name, unique entity identifier, Contractor and Government Entity (CAGE) code, facilities responsible for design, fabrication, assembly, packaging, and test of the product, and whether the entity was the OEM or a distributor (provide manufacturer codes and distributor codes used for the product));

(v) Description of the functionality of the product or service and how that functionality impacts the risk to the product or service;

(vi) An explanation of any factors relevant to determining if the product or service should be permitted by an applicable exception, exemption, or waiver (if the offeror would like the Government to consider a waiver);

(vii) Whether alternative products or services are available that would be compliant with the prohibition;

(viii) If the product or service is related to item maintenance, include the following information on the item being maintained:

(A) Brand;

(B) Model number, OEM number, manufacturer part number, or wholesaler number; and

(C) Item description, as applicable.

(ix) Any readily available information about mitigation actions undertaken or recommended.

(2) If a disclosure is required to be submitted to a contracting office, the offeror shall submit the disclosure as follows:

(i) If a Department of Defense contracting office, the offeror shall submit the disclosure to the website at https://dibnet.dod.mil.

(ii) For all other contracting offices, the Offeror shall submit the disclosure to the Contracting Officer.

(3) If the disclosure provided does not contain any of the information required by paragraph (1), and the Offeror later discovers new information that is required by paragraph (1), then the Offeror shall submit a subsequent disclosure within 72 hours of discovering the new information.

(h) *Executive agency review of disclosures*. The Contracting Officer will review disclosures provided in paragraph (g) to determine if any applicable waiver may be sought. The Contracting Officer may choose not to pursue a waiver and may instead make an award to an Offeror that does not require a waiver.

(End of provision)

TAR 1252.237-71 -- Certification of Data (Nov 2022)

(a) The offeror represents and certifies that to the best of its knowledge and belief, the information and/or data (e.g., company profile; qualifications; background statements; brochures) submitted with its offer is current, accurate, and complete as of the date of its offer.

(b) The offeror understands that any inaccurate data provided to the Department of Transportation may subject the offeror, its subcontractors, its employees, or its representatives to:

(1) prosecution for false statements pursuant to 18 U.S.C. 1001; and/or

(2) enforcement action for false claims or statements pursuant to the Program Fraud Civil Remedies Act of 1986, 31 U.S.C. 3801– 3812 and 49 CFR part 31; and/or

(3) termination for default or for cause under any contract resulting from its offer; and/or

(4) debarment or suspension.

(c) The offeror agrees to obtain a similar certification from its subcontractors and submit such certification(s) with its offer.

Signature: _____

Date: _____

Typed Name and Title: _____

Company Name: _____

This certification concerns a matter within the jurisdiction of an agency of the United States and the making of a false, fictitious, or fraudulent certification may render the maker subject to prosecution under 18 U.S.C. 1001.

(End of provision)

2. INSTRUCTIONS, CONDITIONS, AND NOTICES TO QUOTERS

FAR 52.252-1 -- Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at https://www.acquisition.gov/far.

52.203-11 -- Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions (Sept 2024)
52.203-18 -- Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation (Jan 2017)

(End of provision)

52.204-7 -- System for Award Management (DEVIATION Nov 2025)

The Offeror shall have an active Federal Government contracts registration in the System for Award Management (SAM) when submitting an offer or quotation in response to this solicitation and at the time of award. As part of the SAM registration process, the Government collects information, as described in paragraphs (b) through (d) of this provision, that is necessary to identify the Offeror and for the Offeror to be awarded Federal Government contracts. To register in SAM, go to https://www.sam.gov. Allow for processing time when registering in SAM. If the Offeror is not registered in SAM, it should register immediately after receiving this solicitation.

(a) *Definitions*. As used in this provision—

Commercial and Government Entity (CAGE) code has the meaning provided in the clause at the Federal Acquisition Regulation (FAR) 52.204-13, System for Award Management—Maintenance, of this solicitation.

Electronic Funds Transfer (EFT) indicator means a bank account identifier to establish additional System for Award Management records for identifying alternative EFT accounts (see part 32) for the same entity.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest-level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees. There may be more than one immediate owner (e.g., joint ventures).

Predecessor means an entity whose assets were acquired by the offeror or another entity (most often through merger or acquisition) and whose affairs are now carried out by the offeror or the other entity under a new name.

Taxpayer identification number means the number required by the Internal Revenue Service (IRS) to be used by the offeror to report income tax and other returns. It may be either a Social Security Number or an Employer Identification Number.

Unique entity identifier means a number or other identifier used to identify a specific commercial, nonprofit, or Government entity. See www.sam.gov for the designated entity for establishing unique entity identifiers.

(b) *Identifiers*. The Offeror shall obtain and provide the following identifying information:

(1) *Unique entity identifier (UEI)*.

(i)The Offeror shall obtain a UEI to register in SAM. The Government will independently validate the existence and uniqueness of the Offeror before assigning a UEI to the Offeror. Go to https://www.sam.gov for instructions on obtaining a UEI.

(ii)The Offeror shall enter, in the block with its name and address on the cover page of its offer, the annotation “Unique Entity Identifier” followed by the UEI that identifies the Offeror's name and address exactly as stated in the offer. The Offeror shall also enter its EFT indicator, if applicable.

(iii)The Contracting Officer will use the UEI to verify that the Offeror has an active Federal Government contracts registration in SAM.

(2) *Taxpayer identification number (TIN)*.

(i)The Offeror shall provide its TIN or related information to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d); reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M; and implementing regulations issued by the IRS. The Offeror shall consent for TIN validation; and

(3) *Commercial and Government Entity (CAGE) code*.

(i)The Offeror shall provide a CAGE code and legal business name (Do not use a “doing business as” name) for—

(A)Itself;

(B)Its immediate owner(s), if any;

(C)Its highest-level owner, if any; and

(D)Any predecessor(s), or predecessor of an Offeror’s predecessor, that held a Federal contract or grant within the last three years.

(ii)If the Offeror is in the United States or its outlying areas and does not already have a CAGE code assigned, the DLA CAGE Branch will assign a CAGE code to the Offeror as a part of the SAM registration process. For information on obtaining a CAGE code go to https://cage.dla.mil/.

(iii)The Offeror shall get from any immediate and/or highest-level owner(s) their respective CAGE code(s) to provide the code(s) as part of the registration (FAR 52.204-7(b)(3)(i)).

(iv)If the Offeror is located outside of the United States or its outlying areas, and does not already have a CAGE code assigned, the Offeror may obtain a CAGE code as indicated in the following table.

If the Offeror is…	**Then…**
Located in a country that is a member of the North Atlantic Treaty Organization (NATO) or a sponsored nation	Contact the appropriate National Codification Bureau (https://www.nato.int/structur/ac/135/about/contacts)
Located in a country that is not a member of NATO or a sponsored nation	Contact the NATO Support and Procurement Agency (NSPA) (https://eportal.nspa.nato.int/AC135Public/scage/CageList.aspx)

(c) *Representations and certifications*.

(1) The following FAR solicitation provisions contain entity-level representations and certifications that the Offeror shall submit as part of their Federal Government contracts registration in SAM:

Provision	**Title**	**Date**
52.204-5	Women-Owned Business (Other Than Small Business)	Oct 2014
52.209-2	Prohibition on Contracting with Inverted Domestic Corporations—Representation	Nov 2015

52.209-5	Certification Regarding Responsibility Matters	Aug 2020
52.209-11	Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law	Feb 2016
52.219-1	Small Business Program Representations	Feb 2024
52.219-1 Alt I	Small Business Program Representations, with its Alternate I	Feb 2024
52.219-1 Alt II	Small Business Program Representations, with its Alternate II	Mar 2023
52.226-2	Historically Black College or University and Minority Institution Representation	Oct 2014

(2) By submitting its offer, the Offeror verifies that, as of the date of its offer, its representations and certifications posted electronically in SAM for the provisions listed in paragraph (c)(1) of this provision are current, accurate, and complete. The Offeror's representations and certifications in SAM are hereby incorporated by reference into its offer.

(d) *Other information*. The Offeror shall provide more information on its business operations and type that is necessary to be considered for award of certain contracts and financial information necessary to receive payment under contracts.

(End of provision)

FAR 52.212-1 – Instructions to Offerors – Commercial Products and Commercial Services (DEVIATION Aug 2025)

(a) *Submission of offers*. Submit signed and dated offers to the office specified in this solicitation at or before the exact time specified in this solicitation. As a minimum, offers shall include—

(1) The solicitation number;

(2) The name, address, telephone number of the Offeror;

(3) The Offeror's Unique Entity Identifier (UEI) and, if applicable, Electronic Funds Transfer (EFT) indicator;

(4) Information necessary to evaluate the factors contained in the provision at 52.212-2 or as described in the solicitation;

(5) Responses to provisions that require Offeror completion of information, representations, and certifications (other than those collected via the System for Award Management (SAM)); and

(6) A statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation and any solicitation amendments.

(b) *Period for acceptance of offers*. The Offeror agrees to hold the prices in its offer firm for 60 calendar days from the date specified for receipt of offers, unless another time period is specified in an addendum to the solicitation.

(c) *Late submissions, modifications, revisions, and withdrawals of offers*.

(1) Offerors are responsible for submitting offers and any modifications or revisions to the Government office designated in the solicitation by the time specified in the solicitation.

(2) Any offer, modification, or revision received after the time specified for receipt of offers is "late" and will not be considered unless it is received before award is made and the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition. However, a late modification of an otherwise successful offer that makes its terms

more favorable to the Government will be considered at any time it is received and may be accepted.

(3) If an emergency or unanticipated event interrupts normal Government processes so that offers cannot be received at the Government office designated for receipt of offers by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation or other notice of an extension of the closing date, the time specified for receipt of offers will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(4) Offerors may withdraw their offers by written notice to the Government received at any time before award.

(d) *Contract award (not applicable to Invitation for Bids)*. The Government intends to evaluate offers and award a contract without discussions with Offerors. Therefore, the Offeror's initial offer should contain the Offeror's best terms. However, the Government reserves the right to conduct discussions, if necessary. The Government may reject any or all offers if such action is in the public interest, accept other than the lowest offer, and waive informalities and minor irregularities in offers received.

(e) *Debriefings*. If a postaward debriefing is given to requesting Offerors, the Government will disclose the following information, if applicable:

(1) The agency's evaluation of the significant weak or deficient factors in the debriefed Offeror's offer.

(2) The overall evaluated cost or price and technical rating of the successful Offeror and the debriefed Offeror and past performance information on the debriefed Offeror.

(3) The overall ranking of all Offerors when any ranking was developed by the agency during source selection.

(4) A summary of the rationale for award.

(5) For acquisitions of commercial products, the make and model of the product to be delivered by the successful Offeror.

(6) Reasonable responses to relevant questions posed by the debriefed Offeror as to whether the agency followed source-selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities.

(End of provision)

FAR 52.212-1 – Instructions to Offerors – Commercial Products and Commercial Services (DEVIATION Aug 2025) ADDENDUM

All questions concerning this RFQ shall be submitted electronically to WFL.Purchasing@dot.gov, no later than the due date and time on page B-1 of this RFQ.

Each prospective Quoter should attempt to state each question in such a way that the Quoter would have no objection to the Government publishing that precise question (and its answer) in a formal amendment to the RFQ. Additionally, each prospective Quoter should attempt to word each question in such a way that the publication of that question (and its answer) would not divulge any information that the prospective Quoter considers to be proprietary or confidential.

This is an electronic procurement action. Hard copies of quotations will not be accepted for this solicitation. All documents are to be submitted in Portable Document Format (pdf), or an approved fixed-layout electronic format, via the GSA eBuy Portal. File(s) shall not contain any security restrictions (e.g., password protection) that prevent the Government from distributing

and printing the document(s) and shall not include marketing materials or letters of support/recommendation.

Early submission is encouraged. The timeliness of a quote is determined by the date and time of receipt. It is the Quoter's responsibility to ensure that the quotation submission email is received by the designated cut-off date and time. The Government will not be responsible for any failure attributable to the transmission or receipt of email data.

In responding to this RFQ, the Contractor shall address an understanding of logistics, schedule, and any other miscellaneous issues of which the Government should be aware. The Contractor shall indicate if any technical assumptions have been made, conditions have been stipulated, or exceptions have been taken with the Government Description of Requirement as written. If technical assumptions are not noted, it will be assumed that the vendor's quote reflects no technical assumptions for the award and agrees to comply with all of the terms and conditions set forth herein.

Offerors shall not be reimbursed for the costs of developing a response to this RFQ.

Quotation ***MUST*** include the following:

1. **Price Quote**

   a. Completed Standard Form 18. Attention should be paid to ensure that blocks 8, 12, 13, 14, 15, and 16 are properly and correctly filled.

   b. Completed Price Schedule (Section B).

2. **Technical Quote**

   a. Narrative discussion addressing the quoter's technical approach and technical merit factors with a description of how the Statement of Work requirements will be completed.

   b. Cut sheets, technical specification sheets, drawings, and any other documentation which are necessary for the government to evaluate and determine that all quoted equipment and/or components meet **all** minimum requirements.

   c. Relevant experience information (within the last 7 years), limited to a total of 5 pages, to facilitate the Government's consideration of the vendor's experience as a company providing the same or similar services of equal scope.

      Offerors may provide completed Offeror Work Experience Form(s) (Attachment 0002), or a similar vendor-generated document not to exceed 1 page per reference.

   d. Relevant performance information (within the last 3 years), limited to a total of ten (10) pages, which shall include a short description of the work, the dates of work performance, the name of the client and a contact phone number and email address, so a reference check can be conducted.

      Offeror may provide the Past Performance Reference Questionnaire (Attachment 0003) to customers/references and them submit such surveys to FHWA via e-mail at WFL.Purchasing@dot.gov with the subject line ""Source Selection Information:

69056726Q000042 PPQ"".

e. Completed Representations and Certifications (see Section E paragraph 1).

f. "Reps and Certs FAR Report" from the offerors SAM.gov account.

g. Acknowledgement of all solicitation amendments, if any.

NOTE: Failure to furnish all information required above may result in your quotation being considered non-responsive and eliminated from further consideration.

Fraud Alert. Current and potential U.S. Department of Transportation (DOT) Contractors have recently been receiving fraudulent letters purporting to be issued by DOT. These fraudulent letters request that the Contractors resubmit their banking information to DOT. If you receive such a letter, please DO NOT complete the requested worksheet that is attached to the letters and DO NOT release any information. To register or update information, Contractors are required to go directly through the System for Award Management (SAM) website and never through a third party. You can access SAM at https://sam.gov/.

Department of Transportation (DOT) Compliance with President Trump's Priorities and Agenda. Consistent with President Trump's priorities and agenda, to the maximum extent permitted by law, DOT intends to take immediate action to begin forbearing enforcement of all Federal Acquisition Regulation (FAR) or Transportation Acquisition Regulation (TAR) contract clauses, provisions, terms, and conditions, if inconsistent with EOs and implementing guidance issued by the current administration, including but not limited to:

- Executive Order (EO) 14168, Defending Women from Gender Ideology Extremism and Restoring Biological Truth to the Federal Government (January 20, 2025);
- Executive Order (EO) 14151, Ending Radical and Wasteful Government DEI Programs and Preferencing (January 20, 2025);
- Executive Order (EO) 14148, Initial Rescissions of Harmful Executive Orders and Actions (January 20, 2025);
- Executive Order (EO) 14173, Ending Illegal Discrimination and Restoring Merit-Based Opportunity (January 21, 2025);
- Executive Order (EO) 14168, Defending Women from Gender Ideology Extremism and Restoring Biological Truth to the Federal Government (January 20, 2025);
- OPM Memorandum, Initial Guidance Regarding President Trump's Executive Order Defending Women (January 29, 2025);
- Executive Order (EO) 14208, Ending Procurement and Forced Use of Paper Straws (February 10, 2025);
- Executive Order (EO) 14222, Implementing the President's "Department of Government Efficiency" Cost Efficiency Initiative (February 26, 2025);
- Executive Order (EO) 14240, Eliminating Waste and Saving Taxpayer Dollars by Consolidating Procurement (March 20, 2025);
- Executive Order (EO) 14269, Restoring America's Maritime Dominance (April 9, 2025);
- Executive Order (EO) 14275, Restoring Common Sense to Federal Procurement (April 15, 2025); and
- Executive Order (EO) 14271, Ensuring Commercial, Cost-Effective Solutions in Federal Contracts (April 16, 2025.

DOT remains committed to ensuring its acquisition policies and practices reflect the direction of the current administration and reserves the right to issue further guidance or take additional action as necessary. Contractors are reminded that compliance with applicable laws, regulations, and Executive Orders is a condition of doing business with the Federal Government and DOT. It is the responsibility of each contractor to monitor for updates and adjust operations accordingly.

(End of addendum)

FAR 52.212-2 – Evaluation – Commercial Products and Commercial Services (DEVIATION Aug 2025)

(a) Evaluation factors. The Government will award a firm-fixed price delivery/task resulting from this solicitation order under MAS SIN 532490P to the responsible Offeror whose offer conforming to the solicitation is the lowest evaluated price of quotations meeting or exceeding the requirements for acceptability The following factors will be used to evaluate offers:

- *Price*
- *Technical Capability (based on Compliance with Solicitation Requirements, Requirement Specifications, and Relevant Past Experience), and*
- *Relevant Past Performance*

(b) *Options (if applicable)*. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. The evaluation of options does not obligate the Government to exercise the option(s).

(c) *Notice of award*. A written notice of award or acceptance of an offer furnished to the successful Offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of provision)

FAR 52.212-2 – Evaluation – Commercial Products and Commercial Services (DEVIATION Aug 2025) ADDENDUM

EVALUATION FACTORS

1. **Factor 1 – Price.** The Government will evaluate the quoted price to determine that the price is valid, realistic, fair, and reasonable as well as for consistency and understanding of the PWS/SOW requirements. The price evaluation will determine whether the quoted prices are accurate, complete, and reasonable in relation to the solicitation requirements, market rates, and the Independent Government Cost Estimate (IGCE). The IGCE will **not** be disclosed to the public.

2. **Factor 2A – Compliance with Solicitation Requirements**. Offeror must comply with ALL instructions, submit ALL items as stated FAR 52.212.1 and its Addendum.

a. TECHNICALLY ACCEPTABLE. Complied with ALL instructions and provided ALL required information as stated FAR 52.212.1 and its Addendum

b. TECHNICALLY UNACCEPTABLE
- **i.** Did NOT comply with ALL instructions as stated FAR 52.212.1 and its Addendum; or
- **ii.** Did NOT provide all required information as stated FAR 52.212.1 and its Addendum.

3. **Factor 2B – Requirement Specifications.** The Government will evaluate Offeror submissions for compliance with the technical and materials quality criteria, delivery, installation, maintenance/support, and demobilization requirements as specified in the SOW.

   a. TECHNICALLY ACCEPTABLE. Based on the Government's review, the minimum requirements as specified in the SOW for technical and materials quality criteria, delivery, installation, maintenance/support, and demobilization are met.

   b. TECHNICALLY UNACCEPTABLE. Based on the Government's review:
   - **i.** the minimum requirements as specified in the SOW for technical and materials quality criteria are NOT met; or
   - **ii.** the minimum requirements as specified in the SOW for delivery are NOT met; or
   - **iii.** The minimum requirements as specified in the SOW for installation are NOT met; or
   - **iv.** the minimum requirements as specified in the SOW for maintenance/support are NOT met; or
   - **v.** the minimum requirements as specified in the SOW for demobilization are NOT met.

4. **Factor 2C – Relevant Past Experience**. Offeror must furnish information to indicate a minimum of five (5) years of relevant experience during the last seven (7) years that involve the Offeror providing services of a similar size and scope. FHWA reserves the right to contact such references directly and use such information in determining satisfactory relevant experience. The Government will evaluate how much experience an offeror has performing work similar in nature, magnitude, and complexity. Relevant experience, unlike past performance, is not limited to the past three years.

   a. TECHNICALLY ACCEPTABLE. Provided required information and offeror has a minimum of five (5) years of relevant experience during the last seven (7) years providing services of a similar size and scope.

   b. TECHNICALLY UNACCEPTABLE
   - **i.** Did not provide required information; or
   - **ii.** Information provided does NOT substantiate a minimum of 5 years of relevant experience during the last 7 years providing services of a similar size and scope.

5. **Factor 3 – Relevant Past Performance.** Past performance information is an indicator of an offeror's ability to perform the contract successfully. The currency and relevance of the information, source of the information, the context of the data, and general trends in the contractor's performance will be considered. The Government will evaluate the merits of the Offeror's past performance based on its performance record.

   Evaluation of past performance may be based on information obtained from references submitted by the offeror as well as information obtained from other sources such as CPARS, FAPPIS, PPIRS, SAM, and any other sources deemed necessary by the Contracting Officer.

Only ongoing contracts and contracts completed within the past three years will be evaluated concerning past performance.

a. TECHNICALLY ACCEPTABLE. Based on the Government's review:
- **i.** Evaluation(s) reflect no more than 2 marginal ratings, no unsatisfactory ratings, and the CO has no other information that would lead to conclude that there are significant problems with Offeror's past performance; or
- **ii.** Past performance is not available or so sparse that no meaningful past performance rating can be reasonably assigned, the Offeror shall be determined to have unknown (or neutral) past performance.

b. TECHNICALLY UNACCEPTABLE. Based on the Government's review:
- **i.** Evaluation(s) received reflect 1 or more unsatisfactory ratings; or
- **ii.** Evaluation(s) received reflect 3 or more marginal ratings; or
- **iii.** The CO has other information that would lead the CO to conclude that there are significant problems with Offeror's past performance.

The Government reserves the right to request such additional information as may be necessary to determine the offeror's qualifications for the award or to clarify any aspects of the technical and/or cost/price submissions. Such information shall be furnished promptly upon the Government's request.

BASIS FOR AWARD

The lowest priced quote will be considered as the quote offering the lowest price on the Price Schedule (Section B) grand total for the base and all options, if any. The lowest-priced quote will be evaluated and, if the lowest-priced quote is determined to be technically acceptable, no other quote(s) will be evaluated. If the lowest-priced quote is determined to be technically unacceptable, the next lowest-priced quote will be evaluated. This process will continue until the lowest-priced, technically acceptable quote is identified.

The Government intends to award without discussions; however, the Government reserves the right to enter discussions if determined necessary. Additionally, the Government reserves the right to make no award from this solicitation.

(End of addendum)

52.219-4 -- Notice of Price Evaluation Preference for HUBZone Small Business Concerns (DEVIATION Nov 2025)

(a) Evaluation preference.

(1) Offers will be evaluated by adding a factor of 10 percent to the price of all offers, except-

(i) Offers from HUBZone small business concerns that have not waived the evaluation preference; and

(ii) Otherwise successful offers from small business concerns.

(b) *Waiver of evaluation preference*. A HUBZone small business concern may choose to waive the evaluation preference. If the concern waives the preference, the factor will be added to its offer for evaluation purposes.

[ ] Offeror chooses to waive the evaluation preference.

(c) *Joint venture.* A HUBZone joint venture agrees that, in the performance of the contract, at least 40 percent of the aggregate work performed by the joint venture shall be completed by the HUBZone small business parties to the joint venture. Work performed by the HUBZone small business parties to the joint venture must be more than administrative functions.

(End of provision)

FAR 52.237-1 -- Site Visit (Apr 1984)

Offerors or quoters are urged and expected to inspect the site where services are to be performed and to satisfy themselves regarding all general and local conditions that may affect the cost of contract performance, to the extent that the information is reasonably obtainable. In no event shall failure to inspect the site constitute grounds for a claim after contract award.

(End of provision)

52.252-5 -- Authorized Deviations in Provisions (Nov 2020)

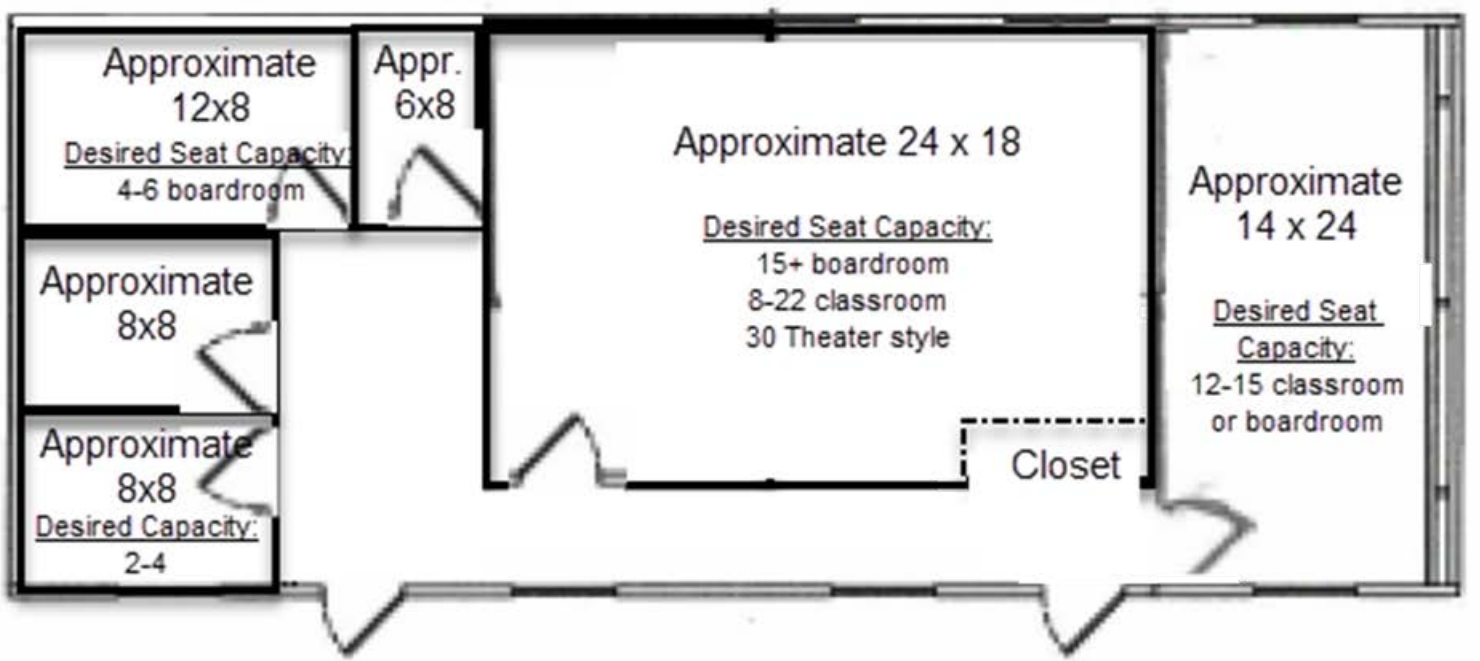
(a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.

(b) The use in this solicitation of any *Transportation Acquisition Regulation (48 CFR 12)* provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of provision)

ATTACHMENT 0002

Approximate Proposed* Office Layout
24x60



*Alternative layouts will be considered, provided overall room quantities and capacity needs are fulfilled.

OFFEROR WORK EXPERIENCE FORM

To be completed & submitted by Offeror

Directions: Complete this form for past or present contracts submitted for evaluation that meets or exceeds the stated criteria.

Submit this completed form with your proposal. **DO NOT EXCEED A MAXIMUM of five (5) pages** total for contract and management experience per identified relevant contract.

Offeror Information:	
Company Name	
Company Address	
Point of Contact	
Phone Number	
E-mail Address	

Contract Information:			
Contract Title			
Owner/Agency Name			
Location/Address			
Point of Contact			
Contact E-mail Address		Contact Phone #	

Contract Information					
Our firm was the PRIME:		**YES**		**NO**	
If the PRIME, list # of subcontractors			If the PRIME, Total Value of Subcontracts:		$
Original Completion Date:			Final Completion Date:		
Original Contract Value:	$		Final Contract Value:		$

Describe work performed under this contract:

Past Performance Questionnaire

Please return the completed questionnaire via e-mail to WFL.Purchasing@dot.gov with a subject line of "Source Selection Information for RFQ 69056727Q000005"

Evaluation Factor Rating System. Please provide ratings and comments regarding the Contractor's performance in each area below using the following ratings:

N/A=Not Applicable **U**=Unsatisfactory **M**=Marginal **S**=Satisfactory **VG**=Very Good **E**=Exceptional

- **Unsatisfactory -** Performance does not meet most contractual requirements and recovery is not likely in a timely manner. The contractual performance of the element or sub-element contains a serious problem(s) for which the contractor's corrective actions appear or were ineffective.
- **Marginal -** Performance does not meet some contractual requirements. The contractual performance of the element or sub-element being evaluated reflects a serious problem for which the contractor has not yet identified corrective actions. The contractor's proposed actions appear only marginally effective or were not fully implemented.
- **Satisfactory -** Performance meets contractual requirements. The contractual performance of the element or sub-element contains some minor problems for which corrective actions taken by the contractor appear or were satisfactory.
- **Very Good -** Performance meets contractual requirements and exceeds some to the Government's benefit. The contractual performance of the element or sub-element being evaluated was accomplished with some minor problems for which corrective actions taken by the contractor were effective.
- **Exceptional –** Performance meets contractual requirements and exceeds many to the Government's benefit. The contractual performance of the element or sub-element being evaluated was accomplished with few minor problems for which corrective actions taken by the contractor were highly effective.

For ratings of "Marginal" and/or "Unsatisfactory", please provide a brief explanation in the remarks section.

Name of Rated Company:	
Project Name:	
Submitted by:	**Phone:** **Email:**
Name of Customer Company/Agency:	

Past Performance Questionnaire

Please return the completed questionnaire via e-mail to WFL.Purchasing@dot.gov with a subject line of "Source Selection Information for RFQ 69056727Q000005"

Note: When completing this questionnaire by e-mail, please do not use a color, such as red, to select the rating in section I of this questionnaire. Color fonts do not show well when printed. Please bold it, underline it, or increase the font size in black.

Technical (quality of product or service)						
How would you rate the quality of the Contractor's technical abilities and/or workmanship to provide the required supplies and/or services?	**N/A**	**U**	**M**	**S**	**VG**	**E**
How would you rate the ability of the contractor to work within an environmentally sensitive area?	**N/A**	**U**	**M**	**S**	**VG**	**E**
Schedule/Timeliness						
How would you rate the contractor's adherence to the approved schedule?	**N/A**	**U**	**M**	**S**	**VG**	**E**
How would you rate the ability of the contractor to provide the right equipment and material to perform the required work?	**N/A**	**U**	**M**	**S**	**VG**	**E**
Cost control (not applicable for firm-fixed-price or fixed-price with economic price adjustment arrangements).						
How would you rate the contractor's ability and effectiveness managing and controlling costs within the confine of the contract?	**N/A**	**U**	**M**	**S**	**VG**	**E**
Management						
Did the contractor's QC program effectively monitor all work?	**N/A**	**U**	**M**	**S**	**VG**	**E**
Did the contractor complete work in accordance with the specifications?	**N/A**	**U**	**M**	**S**	**VG**	**E**
How would you rate the contractor's ability to promptly resolve problems?	**N/A**	**U**	**M**	**S**	**VG**	**E**
How would you rate the Contractor's ability to effectively manage, coordinate, and integrate subcontractors	**N/A**	**U**	**M**	**S**	**VG**	**E**
Small Business Contracting						
How would you rate the Contractor's ability to demonstrate a good faith effort to meet all subcontracting goals in the various socio-economic categories?	**N/A**	**U**	**M**	**S**	**VG**	**E**
How would you rate the Contractor's ability to utilize Small Business concerns and met any other small business participation requirements included in the contract/order?	**N/A**	**U**	**M**	**S**	**VG**	**E**
Regulatory Compliance						
How would you the contractor's compliance with applicable laws, regulations, and contract requirements?	**N/A**	**U**	**M**	**S**	**VG**	**E**

Past Performance Questionnaire

Please return the completed questionnaire via e-mail to WFL.Purchasing@dot.gov with a subject line of "Source Selection Information for RFQ 69056727Q000005"

Other:				
Customer Satisfaction: Was the Contractor committed to customer satisfaction?	**Yes**	**No**	**N/A**	
Safety: Was the Contractor committed to running a safe operation?	**Yes**	**No**	**N/A**	
Recommendation: Would you recommend the Contractor for similar requirements in the future?	**Yes**	**No**		

Remarks:

Notice: On March 14, 2025, Executive Order 14026 was revoked. Contact U.S. Department of Labor for further guidance.

REGISTER OF WAGE DETERMINATIONS UNDER THE SERVICE CONTRACT ACT
By direction of the Secretary of Labor

U.S. DEPARTMENT OF LABOR
EMPLOYMENT STANDARDS ADMINISTRATION
WAGE AND HOUR DIVISION
WASHINGTON D.C. 20210

Daniel W. Simms
Director

Division of
Wage Determinations

Wage Determination No.: 2015-5563
Revision No.: 30
Date Of Last Revision: 8/27/2026

State: Oregon, Washington

Area: Oregon Counties of Clackamas, Columbia, Multnomah, Washington and Yamhill

Washington Counties of Clark and Skamania

Fringe Benefits Required Follow the Occupational Listing

OCCUPATION CODE - TITLE	FOOTNOTE	RATE
01000 - Administrative Support And Clerical Occupations		
01011 - Accounting Clerk I		21.84
01012 - Accounting Clerk II		24.51
01013 - Accounting Clerk III		27.42
01020 - Administrative Assistant		37.86
01035 - Court Reporter		23.87
01041 - Customer Service Representative I		19.10
01042 - Customer Service Representative II		20.85
01043 - Customer Service Representative III		23.39
01051 - Data Entry Operator I		20.32
01052 - Data Entry Operator II		22.18
01060 - Dispatcher, Motor Vehicle		27.52
01070 - Document Preparation Clerk		20.04
01090 - Duplicating Machine Operator		20.04
01111 - General Clerk I		19.89

01112 - General Clerk II	21.70
01113 - General Clerk III	24.35
01120 - Housing Referral Assistant	26.62
01141 - Messenger Courier	21.95
01191 - Order Clerk I	23.15
01192 - Order Clerk II	25.26
01261 - Personnel Assistant (Employment) I	21.27
01262 - Personnel Assistant (Employment) II	23.80
01263 - Personnel Assistant (Employment) III	26.54
01270 - Production Control Clerk	29.55
01290 - Rental Clerk	22.00
01300 - Scheduler, Maintenance	21.34
01311 - Secretary I	21.34
01312 - Secretary II	23.87
01313 - Secretary III	26.62
01320 - Service Order Dispatcher	24.61
01410 - Supply Technician	37.86
01420 - Survey Worker	25.42
01460 - Switchboard Operator/Receptionist	20.98
01531 - Travel Clerk I	21.77
01532 - Travel Clerk II	24.44
01533 - Travel Clerk III	27.34
01611 - Word Processor I	19.08
01612 - Word Processor II	21.42
01613 - Word Processor III	23.97
05000 - Automotive Service Occupations	
05005 - Automobile Body Repairer, Fiberglass	28.48
05010 - Automotive Electrician	27.50
05040 - Automotive Glass Installer	25.88
05070 - Automotive Worker	25.88
05110 - Mobile Equipment Servicer	22.79
05130 - Motor Equipment Metal Mechanic	29.06
05160 - Motor Equipment Metal Worker	25.88
05190 - Motor Vehicle Mechanic	29.06
05220 - Motor Vehicle Mechanic Helper	21.21
05250 - Motor Vehicle Upholstery Worker	24.37
05280 - Motor Vehicle Wrecker	25.88
05310 - Painter, Automotive	27.50
05340 - Radiator Repair Specialist	25.88
05370 - Tire Repairer	23.50
05400 - Transmission Repair Specialist	29.06
07000 - Food Preparation And Service Occupations	
07010 - Baker	20.25
07041 - Cook I	22.02
07042 - Cook II	25.01
07070 - Dishwasher	17.91
07130 - Food Service Worker	18.62
07210 - Meat Cutter	24.99
07260 - Waiter/Waitress	18.95
09000 - Furniture Maintenance And Repair Occupations	
09010 - Electrostatic Spray Painter	25.31
09040 - Furniture Handler	13.19
09080 - Furniture Refinisher	20.19
09090 - Furniture Refinisher Helper	15.57

09110 - Furniture Repairer, Minor	17.88
09130 - Upholsterer	23.00
11000 - General Services And Support Occupations	
11030 - Cleaner, Vehicles	18.86
11060 - Elevator Operator	19.79
11090 - Gardener	28.32
11122 - Housekeeping Aide	19.79
11150 - Janitor	19.79
11210 - Laborer, Grounds Maintenance	22.33
11240 - Maid or Houseman	18.75
11260 - Pruner	20.39
11270 - Tractor Operator	26.36
11330 - Trail Maintenance Worker	22.33
11360 - Window Cleaner	21.67
12000 - Health Occupations	
12010 - Ambulance Driver	25.01
12011 - Breath Alcohol Technician	36.00
12012 - Certified Occupational Therapist Assistant	37.81
12015 - Certified Physical Therapist Assistant	35.91
12020 - Dental Assistant	28.79
12025 - Dental Hygienist	59.18
12030 - EKG Technician	46.03
12035 - Electroneurodiagnostic Technologist	46.03
12040 - Emergency Medical Technician	25.01
12071 - Licensed Practical Nurse I	32.18
12072 - Licensed Practical Nurse II	36.00
12073 - Licensed Practical Nurse III	40.15
12100 - Medical Assistant	27.04
12130 - Medical Laboratory Technician	39.91
12160 - Medical Record Clerk	26.60
12190 - Medical Record Technician	29.76
12195 - Medical Transcriptionist	21.98
12210 - Nuclear Medicine Technologist	60.97
12221 - Nursing Assistant I	17.58
12222 - Nursing Assistant II	19.77
12223 - Nursing Assistant III	21.58
12224 - Nursing Assistant IV	24.21
12235 - Optical Dispenser	28.09
12236 - Optical Technician	22.28
12250 - Pharmacy Technician	28.17
12280 - Phlebotomist	24.85
12305 - Radiologic Technologist	50.39
12311 - Registered Nurse I	35.31
12312 - Registered Nurse II	43.19
12313 - Registered Nurse II, Specialist	43.19
12314 - Registered Nurse III	52.27
12315 - Registered Nurse III, Anesthetist	52.27
12316 - Registered Nurse IV	62.65
12317 - Scheduler (Drug and Alcohol Testing)	44.60
12320 - Substance Abuse Treatment Counselor	36.21
13000 - Information And Arts Occupations	
13011 - Exhibits Specialist I	27.80
13012 - Exhibits Specialist II	34.45
13013 - Exhibits Specialist III	42.14

13041 - Illustrator I		25.77
13042 - Illustrator II		31.93
13043 - Illustrator III		39.06
13047 - Librarian		39.49
13050 - Library Aide/Clerk		23.30
13054 - Library Information Technology Systems Administrator		35.66
13058 - Library Technician		27.21
13061 - Media Specialist I		25.73
13062 - Media Specialist II		28.78
13063 - Media Specialist III		32.10
13071 - Photographer I		20.54
13072 - Photographer II		22.98
13073 - Photographer III		28.47
13074 - Photographer IV		34.83
13075 - Photographer V		42.15
13090 - Technical Order Library Clerk		29.25
13110 - Video Teleconference Technician		27.34
14000 - Information Technology Occupations		
14041 - Computer Operator I		23.27
14042 - Computer Operator II		26.03
14043 - Computer Operator III		29.02
14044 - Computer Operator IV		32.24
14045 - Computer Operator V		35.71
14071 - Computer Programmer I	(see 1)	
14072 - Computer Programmer II	(see 1)	
14073 - Computer Programmer III	(see 1)	
14074 - Computer Programmer IV	(see 1)	
14101 - Computer Systems Analyst I	(see 1)	
14102 - Computer Systems Analyst II	(see 1)	
14103 - Computer Systems Analyst III	(see 1)	
14150 - Peripheral Equipment Operator		23.27
14160 - Personal Computer Support Technician		32.24
14170 - System Support Specialist		35.71
15000 - Instructional Occupations		
15010 - Aircrew Training Devices Instructor (Non-Rated)		42.21
15020 - Aircrew Training Devices Instructor (Rated)		51.09
15030 - Air Crew Training Devices Instructor (Pilot)		61.23
15050 - Computer Based Training Specialist / Instructor		42.21
15060 - Educational Technologist		45.33
15070 - Flight Instructor (Pilot)		61.23
15080 - Graphic Artist		36.33
15085 - Maintenance Test Pilot, Fixed, Jet/Prop		61.23
15086 - Maintenance Test Pilot, Rotary Wing		61.23
15088 - Non-Maintenance Test/Co-Pilot		61.23
15090 - Technical Instructor		30.26
15095 - Technical Instructor/Course Developer		37.02
15110 - Test Proctor		24.43
15120 - Tutor		24.43
16000 - Laundry, Dry-Cleaning, Pressing And Related Occupations		
16010 - Assembler		19.37

16030 - Counter Attendant	19.37
16040 - Dry Cleaner	22.15
16070 - Finisher, Flatwork, Machine	19.37
16090 - Presser, Hand	19.37
16110 - Presser, Machine, Drycleaning	19.37
16130 - Presser, Machine, Shirts	19.37
16160 - Presser, Machine, Wearing Apparel, Laundry	19.37
16190 - Sewing Machine Operator	23.08
16220 - Tailor	23.98
16250 - Washer, Machine	20.30
19000 - Machine Tool Operation And Repair Occupations	
19010 - Machine-Tool Operator (Tool Room)	30.74
19040 - Tool And Die Maker	37.39
21000 - Materials Handling And Packing Occupations	
21020 - Forklift Operator	25.06
21030 - Material Coordinator	29.55
21040 - Material Expediter	29.55
21050 - Material Handling Laborer	22.17
21071 - Order Filler	21.37
21080 - Production Line Worker (Food Processing)	25.06
21110 - Shipping Packer	23.16
21130 - Shipping/Receiving Clerk	23.16
21140 - Store Worker I	17.84
21150 - Stock Clerk	22.85
21210 - Tools And Parts Attendant	25.06
21410 - Warehouse Specialist	25.06
23000 - Mechanics And Maintenance And Repair Occupations	
23010 - Aerospace Structural Welder	42.45
23019 - Aircraft Logs and Records Technician	33.77
23021 - Aircraft Mechanic I	40.27
23022 - Aircraft Mechanic II	42.45
23023 - Aircraft Mechanic III	44.61
23040 - Aircraft Mechanic Helper	29.39
23050 - Aircraft, Painter	38.11
23060 - Aircraft Servicer	33.77
23070 - Aircraft Survival Flight Equipment Technician	38.11
23080 - Aircraft Worker	35.86
23091 - Aircrew Life Support Equipment (ALSE) Mechanic I	35.86
23092 - Aircrew Life Support Equipment (ALSE) Mechanic II	40.27
23110 - Appliance Mechanic	26.85
23120 - Bicycle Repairer	23.04
23125 - Cable Splicer	65.05
23130 - Carpenter, Maintenance	34.80
23140 - Carpet Layer	27.81
23160 - Electrician, Maintenance	50.53
23181 - Electronics Technician Maintenance I	40.82
23182 - Electronics Technician Maintenance II	43.38
23183 - Electronics Technician Maintenance III	45.84
23260 - Fabric Worker	32.94
23290 - Fire Alarm System Mechanic	37.56
23310 - Fire Extinguisher Repairer	30.80

23311 - Fuel Distribution System Mechanic	47.30
23312 - Fuel Distribution System Operator	37.09
23370 - General Maintenance Worker	28.25
23380 - Ground Support Equipment Mechanic	40.27
23381 - Ground Support Equipment Servicer	33.77
23382 - Ground Support Equipment Worker	35.86
23391 - Gunsmith I	30.80
23392 - Gunsmith II	34.98
23393 - Gunsmith III	39.29
23410 - Heating, Ventilation And Air-Conditioning Mechanic	31.38
23411 - Heating, Ventilation And Air Contidioning Mechanic (Research Facility)	33.08
23430 - Heavy Equipment Mechanic	37.75
23440 - Heavy Equipment Operator	38.00
23460 - Instrument Mechanic	36.77
23465 - Laboratory/Shelter Mechanic	37.18
23470 - Laborer	22.17
23510 - Locksmith	24.17
23530 - Machinery Maintenance Mechanic	37.84
23550 - Machinist, Maintenance	30.85
23580 - Maintenance Trades Helper	21.60
23591 - Metrology Technician I	36.77
23592 - Metrology Technician II	38.75
23593 - Metrology Technician III	40.73
23640 - Millwright	37.00
23710 - Office Appliance Repairer	23.34
23760 - Painter, Maintenance	25.62
23790 - Pipefitter, Maintenance	48.56
23810 - Plumber, Maintenance	45.96
23820 - Pneudraulic Systems Mechanic	39.29
23850 - Rigger	39.27
23870 - Scale Mechanic	34.98
23890 - Sheet-Metal Worker, Maintenance	38.26
23910 - Small Engine Mechanic	25.67
23931 - Telecommunications Mechanic I	35.56
23932 - Telecommunications Mechanic II	37.49
23950 - Telephone Lineman	35.31
23960 - Welder, Combination, Maintenance	29.83
23965 - Well Driller	35.36
23970 - Woodcraft Worker	39.29
23980 - Woodworker	30.80
24000 - Personal Needs Occupations	
24550 - Case Manager	24.86
24570 - Child Care Attendant	19.03
24580 - Child Care Center Clerk	23.74
24610 - Chore Aide	21.55
24620 - Family Readiness And Support Services Coordinator	24.86
24630 - Homemaker	24.86
25000 - Plant And System Operations Occupations	
25010 - Boiler Tender	39.40
25040 - Sewage Plant Operator	40.32
25070 - Stationary Engineer	39.40
25190 - Ventilation Equipment Tender	28.75

25210 - Water Treatment Plant Operator		40.32
27000 - Protective Service Occupations		
27004 - Alarm Monitor		39.02
27007 - Baggage Inspector		20.12
27008 - Corrections Officer		42.11
27010 - Court Security Officer		41.56
27030 - Detection Dog Handler		22.51
27040 - Detention Officer		42.11
27070 - Firefighter		41.34
27101 - Guard I		20.12
27102 - Guard II		22.51
27131 - Police Officer I		42.07
27132 - Police Officer II		46.73
28000 - Recreation Occupations		
28041 - Carnival Equipment Operator		22.35
28042 - Carnival Equipment Repairer		24.01
28043 - Carnival Worker		17.29
28210 - Gate Attendant/Gate Tender		25.06
28310 - Lifeguard		17.48
28350 - Park Attendant (Aide)		28.04
28510 - Recreation Aide/Health Facility Attendant		20.47
28515 - Recreation Specialist		34.73
28630 - Sports Official		22.34
28690 - Swimming Pool Operator		27.27
29000 - Stevedoring/Longshoremen Occupational Services		
29010 - Blocker And Bracer		43.10
29020 - Hatch Tender		43.10
29030 - Line Handler		43.10
29041 - Stevedore I		40.57
29042 - Stevedore II		45.80
30000 - Technical Occupations		
30010 - Air Traffic Control Specialist, Center (HFO)	(see 2)	50.14
30011 - Air Traffic Control Specialist, Station (HFO)	(see 2)	34.58
30012 - Air Traffic Control Specialist, Terminal (HFO)	(see 2)	38.07
30021 - Archeological Technician I		23.60
30022 - Archeological Technician II		26.40
30023 - Archeological Technician III		32.69
30030 - Cartographic Technician		32.69
30040 - Civil Engineering Technician		40.98
30051 - Cryogenic Technician I		36.21
30052 - Cryogenic Technician II		39.99
30061 - Drafter/CAD Operator I		23.60
30062 - Drafter/CAD Operator II		26.40
30063 - Drafter/CAD Operator III		29.41
30064 - Drafter/CAD Operator IV		36.21
30081 - Engineering Technician I		19.71
30082 - Engineering Technician II		22.12
30083 - Engineering Technician III		24.75
30084 - Engineering Technician IV		30.66
30085 - Engineering Technician V		37.50

30086 - Engineering Technician VI		45.38
30090 - Environmental Technician		30.04
30095 - Evidence Control Specialist		32.69
30210 - Laboratory Technician		27.31
30221 - Latent Fingerprint Technician I		39.76
30222 - Latent Fingerprint Technician II		43.92
30240 - Mathematical Technician		34.29
30361 - Paralegal/Legal Assistant I		23.93
30362 - Paralegal/Legal Assistant II		29.64
30363 - Paralegal/Legal Assistant III		36.26
30364 - Paralegal/Legal Assistant IV		43.88
30375 - Petroleum Supply Specialist		39.99
30390 - Photo-Optics Technician		32.69
30395 - Radiation Control Technician		39.99
30461 - Technical Writer I		28.62
30462 - Technical Writer II		35.01
30463 - Technical Writer III		42.35
30491 - Unexploded Ordnance (UXO) Technician I		31.87
30492 - Unexploded Ordnance (UXO) Technician II		38.56
30493 - Unexploded Ordnance (UXO) Technician III		46.21
30494 - Unexploded (UXO) Safety Escort		31.87
30495 - Unexploded (UXO) Sweep Personnel		31.87
30501 - Weather Forecaster I		36.21
30502 - Weather Forecaster II		44.04
30620 - Weather Observer, Combined Upper Air Or Surface Programs	(see 2)	29.41
30621 - Weather Observer, Senior	(see 2)	32.69
31000 - Transportation/Mobile Equipment Operation Occupations		
31010 - Airplane Pilot		38.56
31020 - Bus Aide		26.61
31030 - Bus Driver		36.08
31043 - Driver Courier		21.35
31260 - Parking and Lot Attendant		18.98
31290 - Shuttle Bus Driver		20.65
31310 - Taxi Driver		16.50
31361 - Truckdriver, Light		22.94
31362 - Truckdriver, Medium		24.53
31363 - Truckdriver, Heavy		30.67
31364 - Truckdriver, Tractor-Trailer		30.67
99000 - Miscellaneous Occupations		
99020 - Cabin Safety Specialist		18.80
99030 - Cashier		17.58
99050 - Desk Clerk		18.73
99095 - Embalmer		29.76
99130 - Flight Follower		31.87
99251 - Laboratory Animal Caretaker I		21.97
99252 - Laboratory Animal Caretaker II		23.60
99260 - Marketing Analyst		41.62
99310 - Mortician		29.76
99410 - Pest Controller		22.84
99510 - Photofinishing Worker		24.28
99710 - Recycling Laborer		34.70
99711 - Recycling Specialist		40.96
99730 - Refuse Collector		31.69
99810 - Sales Clerk		17.95

99820 - School Crossing Guard	22.87
99830 - Survey Party Chief	36.65
99831 - Surveying Aide	21.61
99832 - Surveying Technician	29.59
99840 - Vending Machine Attendant	22.68
99841 - Vending Machine Repairer	27.67
99842 - Vending Machine Repairer Helper	22.68

Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors, applies to all contracts subject to the Service Contract Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is the victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at www.dol.gov/whd/govcontracts.

Note: Executive Order 13658 generally applies to contracts subject to the Service Contract Act that were awarded on or between January 1, 2015 and January 29, 2022, and that have not been renewed or extended on or after January 30, 2022. If a contract is subject to Executive Order 13658, the contractor must pay all covered workers at least $13.65 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract from May 11, 2026, through December 31, 2026. The applicable Executive Order minimum wage rate will be adjusted annually.
Additional information on contractor requirements and worker protections under Executive Order 13658 is available at www.dol.gov/whd/govcontracts.

ALL OCCUPATIONS LISTED ABOVE RECEIVE THE FOLLOWING BENEFITS:

HEALTH & WELFARE: $5.92 per hour, up to 40 hours per week, or $236.80 per week or $1,026.13 per month

HEALTH & WELFARE EO 13706: $5.42 per hour, up to 40 hours per week, or $216.80 per week, or $939.46 per month*

*This rate is to be used only when compensating employees for performance on an SCA-covered contract also covered by EO 13706, Establishing Paid Sick Leave for Federal Contractors. A contractor may not receive credit toward its SCA obligations for any paid sick leave provided pursuant to EO 13706.

VACATION: 2 weeks paid vacation after 1 year of service with a contractor or successor, 3 weeks after 5 years, and 4 weeks after 15 years. Length of service includes the whole span of continuous service with the present contractor or successor, wherever employed, and with the predecessor contractors in the performance of similar work at the same Federal facility. (Reg. 29 CFR 4.173)

HOLIDAYS: A minimum of eleven paid holidays per year: New Year's Day, Martin Luther King Jr.'s Birthday, Washington's Birthday, Memorial Day, Juneteenth National Independence Day, Independence Day, Labor Day, Columbus Day, Veterans' Day, Thanksgiving Day, and Christmas Day. (A contractor may substitute for any of

the named holidays another day off with pay in accordance with a plan communicated to the employees involved.) (See 29 CFR 4.174)

THE OCCUPATIONS WHICH HAVE NUMBERED FOOTNOTES IN PARENTHESES RECEIVE THE FOLLOWING:

1) COMPUTER EMPLOYEES: This wage determination does not apply to any individual employed in a bona fide executive, administrative, or professional capacity, as defined in 29 C.F.R. Part 541. (See 41 C.F.R. 6701(3)). Because most Computer Systems Analysts and Computer Programmers who are paid at least $27.63 per hour (or at least $684 per week if paid on a salary or fee basis) likely qualify as exempt computer professionals under 29 U.S.C. 213(a)(1) and 29 U.S.C. 213(a)(17), this wage determination may not include wage rates for all occupations within those job families. In such instances, a conformance will be necessary if there are nonexempt employees in these job families working on the contract.

Job titles vary widely and change quickly in the computer industry, and are not determinative of whether an employee is an exempt computer professional. To be exempt, computer employees who satisfy the compensation requirements must also have a primary duty that consists of:

(1) The application of systems analysis techniques and procedures, including consulting with users, to determine hardware, software or system functional specifications;

(2) The design, development, documentation, analysis, creation, testing or modification of computer systems or programs, including prototypes, based on and related to user or system design specifications;

(3) The design, documentation, testing, creation or modification of computer programs related to machine operating systems; or

(4) A combination of the aforementioned duties, the performance of which requires the same level of skills. (29 C.F.R. 541.400).

Any computer employee who meets the applicable compensation requirements and the above duties test qualifies as an exempt computer professional under both section 13(a)(1) and section 13(a)(17) of the Fair Labor Standards Act. (Field Assistance Bulletin No. 2006-3 (Dec. 14, 2006)). Accordingly, this wage determination will not apply to any exempt computer employee regardless of which of these two exemptions is utilized.

2) AIR TRAFFIC CONTROLLERS AND WEATHER OBSERVERS - NIGHT PAY & SUNDAY PAY: If you work at night as part of a regular tour of duty, you will earn a night differential and receive an additional 10% of basic pay for any hours worked between 6pm and 6am. If you are a full-time employed (40 hours a week) and Sunday is part of your regularly scheduled workweek, you are paid at your rate of basic pay plus a Sunday premium of 25% of your basic rate for each hour of Sunday work which is not overtime (i.e. occasional work on Sunday outside the normal tour of duty is considered overtime work).

** HAZARDOUS PAY DIFFERENTIAL **

An 8 percent differential is applicable to employees employed in a position that represents a high degree of hazard when working with or in close proximity to

ordnance, explosives, and incendiary materials. This includes work such as screening, blending, dying, mixing, and pressing of sensitive ordnance, explosives, and pyrotechnic compositions such as lead azide, black powder and photoflash powder. All dry-house activities involving propellants or explosives. Demilitarization, modification, renovation, demolition, and maintenance operations on sensitive ordnance, explosives and incendiary materials. All operations involving re-grading and cleaning of artillery ranges.

A 4 percent differential is applicable to employees employed in a position that represents a low degree of hazard when working with, or in close proximity to ordnance, (or employees possibly adjacent to) explosives and incendiary materials which involves potential injury such as laceration of hands, face, or arms of the employee engaged in the operation, irritation of the skin, minor burns and the like; minimal damage to immediate or adjacent work area or equipment being used. All operations involving, unloading, storage, and hauling of ordnance, explosive, and incendiary ordnance material other than small arms ammunition. These differentials are only applicable to work that has been specifically designated by the agency for ordnance, explosives, and incendiary material differential pay.

** UNIFORM ALLOWANCE **

If employees are required to wear uniforms in the performance of this contract (either by the terms of the Government contract, by the employer, by the state or local law, etc.), the cost of furnishing such uniforms and maintaining (by laundering or dry cleaning) such uniforms is an expense that may not be borne by an employee where such cost reduces the hourly rate below that required by the wage determination. The Department of Labor will accept payment in accordance with the following standards as compliance:

The contractor or subcontractor is required to furnish all employees with an adequate number of uniforms without cost or to reimburse employees for the actual cost of the uniforms. In addition, where uniform cleaning and maintenance is made the responsibility of the employee, all contractors and subcontractors subject to this wage determination shall (in the absence of a bona fide collective bargaining agreement providing for a different amount, or the furnishing of contrary affirmative proof as to the actual cost), reimburse all employees for such cleaning and maintenance at a rate of $3.35 per week (or $.67 cents per day). However, in those instances where the uniforms furnished are made of """"wash and wear"""" materials, may be routinely washed and dried with other personal garments, and do not require any special treatment such as dry cleaning, daily washing, or commercial laundering in order to meet the cleanliness or appearance standards set by the terms of the Government contract, by the contractor, by law, or by the nature of the work, there is no requirement that employees be reimbursed for uniform maintenance costs.

** SERVICE CONTRACT ACT DIRECTORY OF OCCUPATIONS **

The duties of employees under job titles listed are those described in the """"Service Contract Act Directory of Occupations"""", Fifth Edition (Revision 1), dated September 2015, unless otherwise indicated.

** REQUEST FOR AUTHORIZATION OF ADDITIONAL CLASSIFICATION AND WAGE RATE, Standard Form 1444 (SF-1444) **

Conformance Process:

The contracting officer shall require that any class of service employee which is not listed herein and which is to be employed under the contract (i.e., the work to

be performed is not performed by any classification listed in the wage determination), be classified by the contractor so as to provide a reasonable relationship (i.e., appropriate level of skill comparison) between such unlisted classifications and the classifications listed in the wage determination (See 29 CFR 4.6(b)(2)(i)). Such conforming procedures shall be initiated by the contractor prior to the performance of contract work by such unlisted class(es) of employees (See 29 CFR 4.6(b)(2)(ii)). The Wage and Hour Division shall make a final determination of conformed classification, wage rate, and/or fringe benefits which shall be paid to all employees performing in the classification from the first day of work on which contract work is performed by them in the classification. Failure to pay such unlisted employees the compensation agreed upon by the interested parties and/or fully determined by the Wage and Hour Division retroactive to the date such class of employees commenced contract work shall be a violation of the Act and this contract. (See 29 CFR 4.6(b)(2)(v)). When multiple wage determinations are included in a contract, a separate SF-1444 should be prepared for each wage determination to which a class(es) is to be conformed.

The process for preparing a conformance request is as follows:

1) When preparing the bid, the contractor identifies the need for a conformed occupation(s) and computes a proposed rate(s).

2) After contract award, the contractor prepares a written report listing in order the proposed classification title(s), a Federal grade equivalency (FGE) for each proposed classification(s), job description(s), and rationale for proposed wage rate(s), including information regarding the agreement or disagreement of the authorized representative of the employees involved, or where there is no authorized representative, the employees themselves. This report should be submitted to the contracting officer no later than 30 days after such unlisted class(es) of employees performs any contract work.

3) The contracting officer reviews the proposed action and promptly submits a report of the action, together with the agency's recommendations and pertinent information including the position of the contractor and the employees, to the U.S. Department of Labor, Wage and Hour Division, for review (See 29 CFR 4.6(b)(2)(ii)).

4) Within 30 days of receipt, the Wage and Hour Division approves, modifies, or disapproves the action via transmittal to the agency contracting officer, or notifies the contracting officer that additional time will be required to process the request.

5) The contracting officer transmits the Wage and Hour Division's decision to the contractor.

6) Each affected employee shall be furnished by the contractor with a written copy of such determination or it shall be posted as a part of the wage determination (See 29 CFR 4.6(b)(2)(iii)).

Information required by the Regulations must be submitted on SF-1444 or bond paper.

When preparing a conformance request, the """"Service Contract Act Directory of Occupations"""" should be used to compare job definitions to ensure that duties requested are not performed by a classification already listed in the wage determination. Remember, it is not the job title, but the required tasks that determine whether a class is included in an established wage determination. Conformances may not be used to artificially split, combine, or subdivide classifications listed in the wage determination (See 29 CFR 4.152(c)(1)).